

QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

WC/2024/227 | Cory Lea Shepherd (Appellant) v Workers' Compensation Regulator (Respondent)

ANNEXURE B TO THE THIRD NOTICE TO ADMIT FACTS AND DOCUMENTS

Each document is the Respondent's own document or a document in the Respondent's own disclosure. Tabs B4 and B5 are extracts; the complete documents are in the Respondent's disclosure of July 2025. Page numbers are of this annexure.

Tab	Document	Date	Pages
B1	The Respondent's Outlines of Evidence, four lay witnesses	served 24 September 2026	2-6
B2	Email, Ms R Matheson to the Industrial Registry, copied to the Appellant, attaching the Respondent's list of witnesses	24 September 2026, 11:50 am	7-8
B3	Email, Ms R Matheson to the Appellant, "Documents in dispute"	received 24 September 2026	9-11
B4	Extract, Respondent's disclosure: "Disclosure from witness conferencing - Qld Health Payroll" (cover page and the email of Ms S Christensen)	11 July 2025	12-14
B5	Extract, Respondent's disclosure: "Disclosure from witness conferencing - Tammy Reese" (cover page; emails of 30 June, 4, 7 and 8 July 2025)	30 June to 8 July 2025	15-21
B6	The Respondent's response of 8 September 2026 to the notice to admit facts served 28 August 2026	8 September 2026	22-43

DRAFT - Annexure B - 24 September 2026

Queensland Industrial Relations Commission
Cory Shepherd v Workers' Compensation Regulator

Matter – WC/2024/227

The Respondent's Outlines of Evidence

1. Ms Chloe Taylor

Ms Taylor was the Switchboard Manager, Logan Hospital, and the Appellant's direct line manager, in an acting capacity, from around April 2023 to 1 July 2024 supervising rostering, attendance and shifts.

This witness will give the following evidence:

- Denies maintaining an erratic physical presence or imposing unassessed unilateral directives without consultation, and denies any managerial hostility. (*SOFAC para 11*)
- That on 6 June 2023 Ms Taylor found an entry in the switchboard team's shared Communication Book that she considered and removed it without knowing at the time who had written it. (*SOFAC para 12(a)*)
 - Earlier that same day she had sent the whole team, including the Appellant, a reminder email about the book's proper use. When the Appellant arrived for his afternoon shift and learned the entry had been removed, he questioned her closely and loudly in front of other switchboard staff. (*SOFAC para 12(c)-(d)*)
 - She asked him to stop talking over her and offered to discuss it privately, or with Ms Reese, instead. She reported the incident to Ms Reese by email that day. (*SOFAC para 12(b)*)
- That the Appellant texted Ms Taylor on or about 4 April 2023 to say he expected to earn around \$1,500 less than his colleagues over the upcoming fortnight, which covered the Easter long weekend and its four public holidays. (*SOFAC para 19(a)-(b)*)
 - Ms Taylor's evidence is that he was comparing himself to full-time colleagues, whose shifts that fortnight happened, through the ordinary rotation, to fall so as to include most of the public holidays and ten shifts including nights, while he was then rostered 0.8 FTE for eight shifts. (*SOFAC para 19(c)*)
 - Although not required to, she offered him an additional weekend shift, so in the result he worked the Saturday and Sunday public holidays, the Monday public holiday, five weekday penalty shifts and two ordinary day shifts. (*SOFAC para 19(c)-(d)*)
- Confirms she sent the Appellant an email on 14 November 2023 to discuss compliance with shift and break time procedures, arranging a meeting for 15 November 2023. (*SOFAC para 13(f)*)
- Confirms the AVAC correspondence of 3, 21 and 28 May 2024, in which she was involved in emails about correcting the Appellant's shift payments. (*SOFAC para 21(a)-(c)*)

- Confirms the seven-hour break between shifts on 17-18 March 2024 was the result of human error, and was not intentional or repeated. *(SOFAC para 22(a))*
- That All switchboard staff, including the Appellant, had signed an agreement permitting an eight-hour, rather than ten-hour, break between shifts. Ms Taylor sought advice from HR, who confirmed the agreement was on file and continued to apply. *(SOFAC para 22(e))*
- Confirms that the Appellant could refuse shifts at any time. *(SOFAC para 22(b))*
- That Ms Taylor's confirms she was told the Appellant had been asked to retract the email of 15 May 2024 and had refused. Acting on HR's advice, she then removed the email from the shared switchboard inbox herself. *(SOFAC para 16(b)(v)-(vii))*
- Confirms she emailed the Appellant at 12:08pm on 14 May 2024 raising the issues of his difficulty attending his rostered shifts between 13 and 15 May 2024, and his failure to follow the on-call notification process. *(SOFAC para 16(b)(i)-(ii))*
- Confirms she then raised this as an issue with Ms Reese at 1:20pm on 15 May 2024. *(SOFAC para 16(b)(iv))*
- Confirms the Appellant sent her a text message at 5:03pm saying he was "just putting his hand up" about the union delegate role, he did not request her assistance, but she nonetheless provided him with advice and support, and gave him delegate information. *(SOFAC para 17(a), (c)-(d))*

2. Ms Tammy Reese

Ms Tanny Reese was the Director, Health Informatics and Medical Services (HIMS), Ms Taylor's manager and, through that reporting line, the Appellant's second-line manager from around April 2023 to 1 July 2024. She had direct dealings with the Appellant on a number of occasions when matters were escalated to her from Ms Taylor.

This witness will give the following evidence:

- That she received Ms Taylor's email on 6 June 2023 reporting that she had removed an entry from the Communication Book, and that Ms Taylor had addressed it with the Appellant, who was unhappy about it. She never saw the entry itself. *(SOFAC para 12(b))*
- That on 7 August 2023 the Appellant emailed Ms Reese, Ms Taylor, Ms Reese's manager Tracy Smith, and a co-worker, raising concerns about rostering fairness, alleged gossiping and discrimination, and a claimed breach of the enterprise agreement's roster-display requirements. *(SOFAC para 13(a))*
 - Ms Reese responded and met with him on 10 August 2023. As part of that response she also went back through eight months of his rostered and worked shifts to check whether he had in fact been rostered fairly and given a genuine opportunity to pick up additional shifts. *(SOFAC para 13(c))*
 - She followed up in writing on 29 August 2023, addressing each of the matters he had raised, including the timing of roster publication his interest in additional or permanent hours. *(SOFAC para 13(d))*

- She advised him of his option to lodge a formal grievance with HR, providing the relevant policy and EAS information. *(SOFAC para 13(d))*
- Confirms she sent the Appellant a further email on 8 September 2023, continuing to address the issues he had raised. *(SOFAC para 13(e))*
 - He did not take that further at the time. Instead, he applied for and was granted an increase to full-time hours.
- That the Appellant sent an email at 1:15pm on 15 May 2024 from his personal address, copied to the generic Switchboard account, around eighteen other staff and Logan HR, asking that Ms Taylor's office hours be shared with the whole department and referring to "inconsistency" in her arrival and departure times. *(SOFAC para 16(b)(iii))*
 - Ms Reese's evidence is that, read in substance, this amounted to an accusation that Ms Taylor was not working her rostered hours, sent in a way that gave Ms Taylor no chance to respond before the rest of the department saw it. *(SOFAC para 16(b)(v))*
 - After taking HR's advice, Ms Reese emailed the Appellant later that day at 4:12pm, without her electronic signature, then again in materially the same terms at 6:23pm once she noticed the omission, asking him to retract the email, on the basis it did not reflect the department's stated values and could have been raised with Ms Taylor or Ms Reese directly rather than sent to the whole team. *(SOFAC para 16(b)(v))*
 - The Appellant declined to retract it and replied at length disputing that characterization. *(SOFAC para 16(b)(vi))*
 - The email was ultimately removed from the shared inbox by Ms Taylor. *(SOFAC para 16(b)(vii))*
 - Ms Reese was not aware the Appellant had lodged a public interest disclosure at the time she sent this email *(SOFAC para 16(a))*
 - The document she received from HR (Elise McGinley) on 16 May 2024 at 11:43am was not in fact a PID notification, but a forwarded copy of a complaint the Appellant had separately made to the Ethical Standards Unit about Ms Taylor, provided to her for information only. *(SOFAC para 16(a))*
- That her understanding, through Ms Taylor, was that HR had confirmed the Appellant's earlier eight-hour break agreement continued to apply after he moved to full-time employment, and that this was raised by the Appellant around the same time as a separate concern about travel time to and from work not being included in that agreement. *(SOFAC para 22(e))*
- Confirms that the Appellant could refuse shifts at any time. *(SOFAC para 22(b))*

3. Ms Kimberley Wright

Ms Kimberly Wight was Director, Client Services and Performance, Payroll Transactional Services. She has no personal dealings with the Appellant. Her evidence comes from her oversight of the payroll function and payroll's records concerning his employment and pay.

This witness will give the following evidence:

- General position on the Appellant's pay queries. Payroll's review of the pay issues the Appellant raised across 2023 and 2024 shows they were investigated and, where a discrepancy or error was found, corrected. There are no outstanding underpayments owed to him. (*SOFAC para 20(a)-(c), (f)*)
- The public holiday allowance versus "public holiday not required".
 - Ms Wright explains the distinction that an employee on a straight Monday-to-Friday roster who is not required to work a public holiday is simply paid "public holiday not required" within their ordinary contracted hours, whereas a continuous shift worker whose roster has been varied around a public holiday can instead be paid a discretionary public holiday allowance (an additional 7.6-hour payment, outside ordinary hours), which must be approved and submitted by the line manager on an AVAC. (*SOFAC para 20(d)*)
 - The Appellant was not separately entitled to a "public holiday not worked" amount on top of whichever of these two payments was appropriate to his circumstances. (*SOFAC para 20(d)*)
- That the Appellant signed an "eight-hour shift agreement" on 17 June 2020, a Metro South-specific document, made under clause 15.1 of the *Hospital and Health Services General Employee Award State 2015*, reducing his break between shifts from ten hours to eight for more than one break period, with no end date, so that it continues to apply indefinitely unless replaced. (*SOFAC para 22(e)*)
 - She confirms that payroll processes and holds these agreements but does not itself assess an employee's entitlement under them, or under any change in employment status. (*SOFAC para 22(e)*)
- That when the system did not apply an additional payment for a shift separated by only a seven-hour break 17–18 March 2024., Ms Wright's team escalated the query to their internal Technical Support team to check whether this was a payroll error. The advice returned was that the Award's fatigue provision applies to breaks around overtime, not between two ordinary shifts, and that what had occurred was better characterised as a rostering practice issue for the line manager rather than an unpaid entitlement. (*SOFAC para 24(b)*)

4. Ms Nicole Earl

Ms Nicole Earl worked Payroll, Payroll Transactional Services. She has no personal dealings with the Appellant. Her evidence comes from payroll's records concerning his employment and pay.

This witness will give the following evidence:

- That Ms Earl's review of the Appellant's pay for the fortnight including 30 March 2024 shows he was originally paid an eleventh, additional shift because that public holiday had been processed as "public holiday not required", a payment that sits inside an employee's ordinary contracted hours, which pushed him

over his contracted 80 hours for the fortnight and triggered an automatic hours reduction on his payslip. (SOFAC para 20(a), (d))

- The entry was later corrected by amending it from “public holiday not required” to the discretionary public holiday allowance, which is not counted within ordinary hours. (SOFAC para 20(d))
- On Ms Earl’s evidence, once that correction is understood, the Appellant has in fact been paid for that public holiday, and the confusion is explained by how the two different payments appear (or fail to appear) on a payslip. (SOFAC para 20(e)-(f))
- With respect to the issue the Appellant separately raised the earlier date of 10 April 2023, Ms Earl’s evidence is that he worked a night shift that day which, under the Award’s “majority of the shift” rule, fell to be treated as falling on the following (non-holiday) day, so no public holiday entitlement arose, and because no AVAC was ever submitted seeking the discretionary allowance for that date either, nothing further is payable in respect of it. (SOFAC para 20(a))
- That from the roster, the Appellant’s break between two shifts 17–18 March 2024 was only seven hours, that he was rostered on ordinary hours rather than overtime at the time, and that he took paid sick leave on 19 March 2024. (SOFAC para 22(a), (c))
- That From a review of the Appellant’s MyHR leave record (leave form reference 15480560, for the period 20–27 February 2024), Ms Wright confirms the Appellant uploaded his Special Pandemic Leave application together with a supporting attachment on 20 February 2024 at 11:41am. (SOFAC para 14(c), (e))
 - Ms Taylor declined the application the next day, 21 February, on the stated basis that a minimum five-day period of leave was required. (SOFAC para 14(d))
 - The Appellant resubmitted the same application on 28 February, and it was declined again on 29 February for want of an attached statutory declaration or evidence of a positive test. (SOFAC para 14(d))
 - On payroll’s own review of the system’s attachment history, however, the supporting document had in fact been attached from the original 20 February submission onward, meaning the second decline also appears to have been made in error. (SOFAC para 14(e)-(f))
 - The Appellant resubmitted the same material again on 29 February 2024, and it was approved that day by the delegate and manager, he was on leave, and continued to be paid, throughout the period this was being sorted out. (SOFAC para 14(g))
 - Ms Wright had no knowledge of a “safety mandate” the Appellant appears to associate with a 2006 ombudsman report about rest breaks
 - the timing of Ms Reese’s May 2024 email relative to the Appellant’s PID is an HR matter outside payroll’s own records.

WC/2024/227 - Cory Shepherd v Workers' Compensation Regulator

From: Renee Matheson

Renee.Matheson@oir.qld.gov.au

To: QIRC.Registry QIRC.Registry@QIRC.qld.gov.au

Cc: Cory Shepherd coryshepherd1@hotmail.com

Sent: Thursday 24 September at 11:50

Dear Sir/Madam,

I refer to the above matter before the Commission.

Please see for **filing** with the Registry and **serving** upon the Appellant, the Regulator's (the respondent) list of witnesses.

The respondent is intending to call the following lay witness at the hearing of this matter:

1. **Ms Chloe Taylor**
2. **Ms Tammy Reese**
3. **Ms Kimberley Wright**
4. **Ms Nicole Earl**

The respondent reserves its right to amend this list depending on the case presented by the appellant at the hearing.

Should you have any queries, please do not hesitate to contact me.

Kind regards,

Renee Matheson

Senior Appeals Officer

Workers' Compensation Regulatory Services

Office of Industrial Relations

P [07 3842 2792](tel:0738422792) **M** [0460 021 030](tel:0460021030)

E Renee.matheson@oir.qld.gov.au

150 Mary Street, Brisbane QLD 4000

PO Box 10119, Brisbane Adelaide St QLD 4000

This email (including any attached files) is intended only for the addressee and may contain confidential information. If you are not the addressee, you are notified that any transmission, distribution, printing or photocopying of this email is strictly prohibited. If you have received this email in error, please immediately notify the Office of Industrial Relations and delete any copies. Unless explicitly attributed, the opinions expressed do not necessarily represent the official position of the Office of Industrial Relations. The Office of Industrial Relations does not accept any responsibility for any loss or damage that may result from reliance on, or the use of, any information contained in this email and/or attachments. It is your responsibility to ensure that this email and any attachments do not contain and are not affected by computer viruses or defects as this message is transmitted over Internet.

**FW: WC/2024/227 - Cory Shepherd v
Workers' Compensation Regulator -
Documents in dispute**

From: Cory Shepherd

coryshepherd1@hotmail.com

To: bolandsframeworks@gmail.com

bolandsframeworks@gmail.com

Sent: Thursday 24 September at 09:51

Auto-forwarded from

coryshepherd1@hotmail.com for case file (QIRC /
OIC appeal notice).

From: Renee Matheson

[<Renee.Matheson@oir.qld.gov.au>](mailto:Renee.Matheson@oir.qld.gov.au)

Sent: Wednesday, 23 September 2026 23:51:10

To: Cory Shepherd [<coryshepherd1@hotmail.com>](mailto:coryshepherd1@hotmail.com)

Subject: WC/2024/227 - Cory Shepherd v Workers'
Compensation Regulator - Documents in dispute

Dear Mr Shepherd,

I refer to your letter dated 9 September 2026, in relation to
the documents which authenticity was disputed.

Upon further review of the appeal file, the Regulator is able
to confirm the veracity of the following documents:

- 6 – Email of Chloe Taylor to Logan Switchboard –
subject: Afterhours oncall process – switchboard –
15/04/2024
- 20 – Letter MSH to Commissioner Dwyer –
05/06/2026
- 30 – email of Chloe Taylor to Logan Switchboard –
subject: What's Chloe's Hours?! – 23/08/2023
- 30A – email of Chloe Taylor to Logan Switchboard –
subject: Good morning Team' – 18/06/2024

In relation to the remaining documents in dispute:

- 1 – Role description, AO3 Switchboard Services,
logan hospital

- 5 – Email of Chloe Taylor to Cory Shepherd –
subject: Approved – Permanent Full Time FTE –
27/09/2023 1:52pm
- 17 to 19 – Movements forms (x3)
- 21 – Email from yourself to Cory Shepherd –
subject: Cory Shepherd ECC further information –
07/07/2026
- 22 – Consultation Paper – Proposed rosters for
switchboard services, Logan Hospital – signed by
Scott Hughes 12/11/2024
- 23 – Consultation outcome – Proposed rosters for
switchboard services, Logan Hospital – signed by
Scott Hughes 12/12/2024
- 31 – Spreadsheet ‘2024 Emergency Code Register’ –
March 2024 sheet – entries 16 to 20 March 2024

The Regulator has requested copies of these documents to be disclosed from MSH.

Upon receipt of these documents from MSH, I will disclose copies to you as soon as possible.

Kind regards,

Renee Matheson

Senior Appeals Officer

Workers’ Compensation Regulatory Services

Office of Industrial Relations

P 07 3842 2792 **M** 0460 021 030

E Renee.matheson@oir.qld.gov.au

150 Mary Street, Brisbane QLD 4000

PO Box 10119, Brisbane Adelaide St QLD 4000

DELIVERING
FOR QUEENSLAND



Queensland
Government

This email (including any attached files) is intended only for the addressee and may contain confidential information. If you are not the addressee, you are notified that any transmission,

distribution, printing or photocopying of this email is strictly prohibited. If you have received this email in error, please immediately notify the Office of Industrial Relations and delete any copies. Unless explicitly attributed, the opinions expressed do not necessarily represent the official position of the Office of Industrial Relations. The Office of Industrial Relations does not accept any responsibility for any loss or damage that may result from reliance on, or the use of, any information contained in this email and/or attachments. It is your responsibility to ensure that this email and any attachments do not contain and are not affected by computer viruses or defects as this message is transmitted over Internet.



WC/2024/227 Cory Shepherd v WCR
Disclosure from witness conferencing -
Qld Health Payroll

WCRS

Workers' Compensation Regulatory Services
worksafe.qld.gov.au



From: [Samantha Christensen](#)
To: [Renee Matheson](#)
Cc: [Kimberley Wright](#)
Subject: WC/2024/227 - Cory Shepherd v Workers' Compensation Regulator - NNPD request for disclosure
Date: Friday, 11 July 2025 12:02:25 PM
Attachments: [image001.png](#)
[image002.png](#)
[image004.png](#)
[image005.png](#)
[image006.png](#)
[image007.png](#)
[image008.png](#)
[WC.2024.227 Shepherd - NNPD Cover letter + Notice - Old Health.pdf](#)
[8 hr shift agreement July 2020.pdf](#)
[Email_Corey_Shepherd_388372_Pay_issues.pdf](#)
[Payslip_01_05.02.24 - 18.02.24.pdf](#)
[Payslip_02_19.02.24 - 03.03.24.pdf](#)
[Payslip_03_04.03.24 - 17.03.24.pdf](#)
[Payslip_04_18.03.24 - 31.03.24.pdf](#)
[Payslip_05_01.04.24 - 14.04.24 \(covers the 30.03.24\).pdf](#)
[Payslip_06_13.05.24 - 26.05.24.pdf](#)
[Payslip_07_09.06.25 - 22.06.25.pdf](#)

CAUTION: This email originated from outside of OIR. Do not click links or open attachments unless you recognise the sender and know the content is safe.

Hi Renee,

Kim Wright is currently out of office, and she had requested that I provide you with the information in relation to the case for Mr Shepherd on her behalf.

Please find attached requested documents with an explanation below:

- Original Payslips that cover the periods of employment (including date of the Payslip) that cover the following periods of employment:
 - fortnight commencing 5 February 2024 – Payslip 01 attached - however this covers the 05.2.24 – 18.02.24. Payslip 03 and payslip 04 will cover the 17th and 18th of March 2024. (that cover 17 March – 18 March 2024)
 - fortnight commencing 19 February 2024 – Payslip 02 attached.
 - fortnight commencing 18 March 2024 – Payslip 03 attached however the public holiday not required was submitted late and will appear on Payslip 05, page 3. (that cover the date of 30/03/2024)
 - fortnight commencing 1 April 2024. – Payslip 05 attached.
- Any amended Payslips (including date of amendment to the Payslip) that cover the following periods of employment:
 - fortnight commencing 5 February 2024 – The shift on the 09.02.2024 was amended with an exemption for the Validation of Claims form on the 30.06.2025 and is on Payslip 07. (that cover 17 March – 18 March 2024)
 - fortnight commencing 19 February 2024 – Payslip 06 attached, page 3 shows the 'Hours_Top-Up – Adjustment' of \$39.81 being reversed and replaced with 'NP_Special_Leave – Adjustment' which is leave without pay for the hour on the 28/02/2024 shift.
 - fortnight commencing 18 March 2024 – Payslip 06 attached, page 3 shows the 30.03.2024 being amended to 'PubHolLv-DayPayforOffDay' (public holiday allowance). (that cover the date of 30/03/2024)
 - fortnight commencing 1 April 2024. – Payslip 06 attached, page 3 shows 'Overtime_ - _4.0' amended for the shift on the 01.04.2024.

- Complete 8 hour shift agreement signed by Mr Shepherd 17/06/2020 – Attached and locatable on process reference number #3270583.

Emails

- 08/04/24 to 01/07/2024 – Emails to and from payroll in relation to pay issues raised by Mr Shepherd (paragraphs 20 to 31 SOFAC) including:
 - on or about 8 April 2024 emails concerning “public holiday not worked” on 30 March 2024 (paragraph 23 SOFAC) – This email was from Mr. Shephard to Ms Taylor which payroll do not have access to.
 - on or about 24 April 2024, emails sent from/to Mr Shepherd about “underpayments” (paragraph 25 SOFAC) – This email was from Mr. Shephard to Ms Taylor which payroll do not have access to.
 - on or about 03/05/2024, emails sent from/to Mr Shepherd about the RDO and overtime issue (paragraph 27 SOFAC) – Attached titled ‘Cory Shepherd 388372 Pay issues’.
 - on or about 10/05/2024, emails sent from/to Mr Shepherd about the Mr Shepherd’s concerns (paragraph 28 SOFAC) - Attached titled ‘Cory Shepherd 388372 Pay issues’.
 - on or about 13/05/2024, emails sent from/to Mr Shepherd about the RDO and AVAC (paragraph 29 SOFAC) - Attached titled ‘Cory Shepherd 388372 Pay issues’.

Please let me know if you require anything further.

Kind regards,



Samantha Christensen

Manager Service Delivery

Central Service Centre, Payroll Transactional
Services | Corporate Enterprise Solutions,
Corporate Services
Division | Queensland Health

M 0436 610 041
E Samantha.Christensen@health.qld.gov.au
W health.qld.gov.au
A Level 3, Chermiside Galleria, 831 Gympie Road,
CHERMISIDE QLD 4032



Queensland Health acknowledges the Traditional Custodians of the land across Queensland, and pays respect to First Nations Elders past, present and future.

From: Renee Matheson <Renee.Matheson@oir.qld.gov.au>

Sent: Friday, 4 July 2025 5:11 PM

To: Kimberley Wright <Kimberley.Wright@health.qld.gov.au>

Subject: RE: WC/2024/227 - Cory Shepherd v Workers' Compensation Regulator - NNPD request for disclosure

This email originated from outside Queensland Health. DO NOT click on any links or open attachments unless you recognise the sender and know the content is safe.

Good afternoon Kimberley,



WC/2024/227 Cory Shepherd v WCR
Disclosure from witness conferencing - Tammy Reese

WCRS

Workers' Compensation Regulatory Services
worksafe.qld.gov.au



From: [David Hall](#)
To: [Renee Matheson](#)
Subject: CM: FW: WC/2024/227 - Cory Shepherd v Workers' Compensation Regulator - Request for documentation
Date: Tuesday, 8 July 2025 10:53:05 AM
Attachments: [image002.png](#)
[image003.png](#)
[image004.png](#)
[Fwd Communication Book Update.msg](#)
[Communication Book 20.05.2024.msg](#)
[RE Catch up 130pm - 15.11.23.msg](#)
[RE Increase of hours and Workplace issues.msg](#)
[RE Increase of hours and Workplace issues.msg](#)
[Re Increase of hours and Workplace issues.msg](#)
[Re Increase of hours and Workplace issues.msg](#)
[RE Increase of hours and Workplace issues.msg](#)
[RE Increase of hours and Workplace issues.msg](#)
[Rostered shifts Cory S. past 8 months.xlsx.msg](#)
[Re Roster Concerns.msg](#)
[RE Roster Concerns.msg](#)
[Roster Concerns.msg](#)
[FW Roster Concerns.msg](#)
[Re Increase of hours and Workplace issues.msg](#)
[RE Office Hours and Departmental Directives.msg](#)
[Re Office Hours and Departmental Directives.msg](#)
[RE Office Hours and Departmental Directives.msg](#)
[Switchboard Manager - On call and Hours..msg](#)

CAUTION: This email originated from outside of OIR. Do not click links or open attachments unless you recognise the sender and know the content is safe.

David Hall

A/Director | Employee Health Safety & Wellbeing
Metro South Human Resources

Metro South HR

m. 0412058080

e. David.hall@health.qld.gov.au | metrosouth.health.qld.gov.au

From: Tammy Reese <Tammy.Reese@health.qld.gov.au>
Sent: Monday, July 7, 2025 2:37 PM
To: David Hall <David.Hall@health.qld.gov.au>
Subject: RE: WC/2024/227 - Cory Shepherd v Workers' Compensation Regulator - Request for documentation

Good Afternoon David,

I have been requested below to send the following emails and information to Renee Matheson with regards to the Workers Compensation Appeal in relation to a staff member as part of this review. Thus our HR dept suggested when I checked to see if it is approved to send this information that I just check out with yourself if the contents of the email I have drafted to send to check if it is acceptable to send and share this information and requested emails. Happy for any feedback you may have. Some of my answer to their questions are in the email trail below in blue.

Kind Regards

Tammy

Hi Renee,

Please see the relevant information to your questions below in blue and requested information as well. If I have missed anything or if you have any further questions please let me know.

Kind Regards

Tammy

Tammy Reese

Director HIMS-LBH | Health Information Management Services

MSH Finance Services

Logan Hospital, MSH

Level 2, Building 1, Cnr Loganlea & Armstrong Rds, Qld, 4131

[Metro South Health](#) |   

e. tammy.reese@health.qld.gov.au | [Chat on Teams](#)

p. 07 3299 8934

a. Mon-Fri 8:30-5:00



Metro South Health recognises and pays respect to the traditional custodians of the land and waters – the Yugambeh, Quandamooka, Jaggera, Ugarapul, Turrbal, and Mununjali peoples – and to Elders, past, present and emerging.

From: Renee Matheson <Renee.Matheson@oir.qld.gov.au>

Sent: Friday, July 4, 2025 11:36 AM

To: Tammy Reese <Tammy.Reese@health.qld.gov.au>

Subject: WC/2024/227 - Cory Shepherd v Workers' Compensation Regulator - Request for documentation

This email originated from outside Queensland Health. DO NOT click on any links or open attachments unless you recognise the sender and know the content is safe.

Good morning Tammy,

Thank you for taking the time to speak with Lisa and I yesterday in relation to this matter.

The information you have provided is very helpful and thank you for being willing to provide some additional documentation as mentioned in the conference yesterday.

From our notes from yesterday, could we please have the following information:

- Please confirm the start date of employment of Chloe Taylor as manager of the Switchboard team.
 - Chloe Taylor was acting in our role of Switchboard Manager on the following dates, noting she did eventually get the role permanently and remains in the role to date
 - > 4-4-22 to 17-5-22
 - > 28-7-22 to 16-9-22
 - > 31-1-23 to today
- Issue of communication book – Email from Chloe to Tammy in relation to 06/06/2023 event of comment being removed. (paragraph 8 SOFAC)
- Please see the first attachment above titled 'Fwd: Communication Book Update' which was sent to me from Chloe on the 6.6.23 at 4:06pm.
- Any additional emails Tammy may have in relation to communication book issue on or around February 2024. (paragraph 8 SOFAC)
 - The only other communication book email issue I can locate was in relation to I think to another staff member but this occurred around the 20.5.24 but I am not 100% sure if Chloe exactly knows whom was the author of the entry and I wonder if there may be a possibility it was not the employee Carolyn whom she original thought was the author of this entry.
- Details on meeting had with Mr Shepherd before July 2024 in relation to his start/finish times or absences (if available)
 - Please note I do have a summary of a meeting Chloe and I had with Cory in my office on the 15.11.23. I have attached a copy of the email appointment sent to Cory. Points that were discussed are as follows:
 - Giving feedback on the roster he submitted to the Business Case for Change process for Switchboard. Chloe thanks Cory for taking the time to submit a roster for consideration as part of the business case for change.
 - Discussion about Cory working on some sort of agreement with Switchboard staff that he was seeking their endorsement/feedback on. I think the background was some Switchboard staff had raised concerns with Chloe that Cory been asking staff to review his 12 hour draft roster and he was seeking their individual agreement to working a 12 hour roster. Chloe was hoping to get a better understanding from Cory about what was the agreement he was seeking from staff as some staff had reported they were a bit uncomfortable about being asked to agree with what was being proposed. Cory stated that it was just asking if staff agree to work 12 hour shifts and was just verbal and he took what staff say at face value and he was not forcing anyone to go either way and he would be happy to send it to Chloe but I think Chloe stated that was not necessary at the time. Chloe and I discussed that Cory just had to aware that different people had different circumstances and we just need to be respectful of these different circumstances and it may even be part-time staff and full-time staff may have different opinions on what would work best for themselves. It was discussed some staff may need time to consider what is being proposed and don't want to feel pressured to agree. Cory said he respected staff's decisions if they did not want to sign anything.

- I updated Cory about what the next steps were in relation to Business case for change and that we were currently collating the feedback from staff, reviewing roster feedback and reviewing the rosters presented and the next step would be hopefully a decision on what roster is recommended for approval or if another round of consultation is required, union consultation and then there would need to be an implementation document to discuss with staff what the roster would look like and dates of implementation and then the roster would be trialled and then reviewed after a certain period of time. I did ask some queries about his 12 hour roster and how he proposed that would work in terms of pay. I also advised that the main issue with the roster is there is not necessarily fairness to the part-timers for penalties when you compare the full-time penalties, but Cory stated he did try to balance this by statistical value. I also discussed that his roster did not include cross over shifts like we currently have and I explained why I thought that was important from a coverage point of view if one of the persons coming into shift could be potentially delayed for example due to traffic and I discussed why handover was important.
- Chloe discussed with Cory his start times being late and that of the shift and break times being sometimes too long and that she was also addressing this with other staff also. Chloe discussed that staff including Cory had been arriving late and also finishing early and that she had sent a recent email out about shift times and break times the previous week but it still seems to be a bit of an issue with some staff including Cory. Chloe said that she knew Cory had discussed one such occasion with her but just to remember the requirements about starting times, only taking allocated break times (and she discussed what these were, 10 mins first break, lunch 30 mins and 2 break 10 mins), working back if late to work but notifying Chloe of this. Chloe also discussed that Cory needed to remember to update the roster and following that process giving her a call. Cory stated he thought he did call Chloe but Chloe said he usually does but not always and that it was not just Cory she is reminding but other staff also.
- Cory asked Chloe to address the issue of staff using their phones as this was a concern and that he was tired of taking the calls when other are not. When queried about what are the other staff doing if they are not taking calls from the switchboard Cory said they may be answering work emails but that he was frustrated that they don't multitask like he does and answer calls whilst attending to emails, etc. Cory said some staff 'eight' their keyboard and this frustrated him, as he feels exhausted that sometimes others are not picking the same call volume. I advised if Cory feels this is an ongoing issue with certain an individual or individuals to please let Chloe know so that she can follow up on this with reviewing the relevant shift call stats and then following up with the staff member if a problem is found.
- Chloe raised concerns she had with Cory in relation to new processes in Switchboard and said something to the effect of that as much as she is willing to hear feedback and staff ideas that Cory just needs to be mindful that should Cory or other staff wish to introduce new processes or suggest different ways of doing things to just discuss it with Chloe first before making changes.
- Chloe discussed that if Cory had any other concerns at the present time which he said he did not but that should he ever have any to bring these to herself or

me at any time at all.

- Chloe was planning to arrange a discussion with Cory with myself there as support to Chloe upon his return after (after the mid June 24) as he was on sick leave at the time to have a discussion about a few behavioural issues from Cory, including giving adequate time to call in before a shift as the previous week I think he had given less than 2 hours notice (as per our Switchboard guidelines which is minimum 2 hours notice) before a shift start that he would not be attending his shift, not leaving the shift early, etc. but after the recent issue of Cory being on leave for a number of weeks and with Cory now not having any leave balance left SL or RL in lieu of sick leave it was decided a separate discussion item about Absenteeism that we were also planning on addressing was the first one Chloe needed to be addressed with Cory before discussing the other behavioural issues with Cory. Unfortunately, then Cory was off on leave so the two separate conversations did not happen occur at the time.
- Emails and exchanges relating to 07/08/2023 email Mr Shepherd sent to Tammy, Chloe, Tracey Smith and Patricia stating multi issues:
 - Tammy email to Chloe with 8 months of Mr Shepherd's roster to check.
 - Please see Cory's email that he sent to on the 7.8.23 at the bottom of the fourth attached email titled "RE: Increase of hours and Workplace issues" which is my response to Cory following that email.
 - Responses
 - Meeting details noted to have happened 29/08/2023
 - Please see the email I sent to Cory which summaries most items discussed at the meeting. Essentially from my notes our discussion included:
 - Rostering concerns that Cory had about his roster
 - Distribution of roster timeframe concerns
 - Concerns about Chloe
 - Request for additional shifts
 - Please note Cory did raise some roster concerns on the 1.5.24 and you will see his email attached, my email in response and also my reaching out to HR to get clarification on certain items Cory is referring to in his email
- 13/05/2024 issue – the pack – all emails and correspondence in relation to this issue (paragraphs 12 and 16 SOFAC)
 - Noted this email could be dated 15/05/2024
 - I have looked back at my notes regarding this time and would like to correct my statement I made 3.7.25 when we discussed this issue. Please note following receiving this email from Cory, Chloe rang me stating she was upset following receiving this email and she had contacted HR and spoke to Mackenzie Prichard. I then contacted HR to ask what should I do in regards to this request and rang HR but could not get Mackenzie but instead spoke to Brendon Punch from HR. Brendon assist me with suggesting wording to put in an email to Cory in reply recommending asking if he could retract the email.
 - Emails with HR Elise
 - Response from Mr Shepherd
- 15/5/24 email from Mr Shepherd to Tammy asking if Chloe's hours etc could be communicated to the entire team (paragraph 15 SOFAC)
 - emails regarding Tammy's advice to Mr Shepherd in relation to this and any response from Mr Shepherd

- emails that Tammy received from HR in relation to this (if any)
- on or about 15/5/24 the email from Chloe advising of her hours

If you have any questions or concerns in relation to the above, please do not hesitate to contact me.

Kind regards,

Renee Matheson
Senior Appeals Officer

Workers' Compensation Regulatory Services

Office of Industrial Relations

P 07 3842 2792 M 0460 021 030

150 Mary Street, Brisbane QLD 4000

PO Box 10119, Brisbane Adelaide St QLD 4000



From: Renee Matheson

Sent: Monday, 30 June 2025 12:06 PM

To: tammy.reese@health.qld.gov.au

Subject: WC/2024/227 - Cory Shepherd v Workers' Compensation Regulator - documents for conference

Good afternoon Tammy,

In readiness for our conference with you at 1pm on Thursday 3 July 2025, please see below allegations raised by Mr Shepherd that Lisa and I will be speaking with you about.

The conference is an informal chat, although confidential and not discussed with other witnesses, where Lisa and I can touch base and get some background in relation to events raised by Mr Shepherd.

Stressor 1 – Victimisation in the workplace

5. During his employment, Ms Taylor and Ms Reese would react negatively when Mr Shepherd raised workplace concerns.

6. On 4 April 2023, Mr Shepherd sent a text message to Ms Taylor complaining that because of the way he was rostered, he would earn \$1,500.00 less than his colleagues.

7. On 7 August 2023, Mr Shepherd sent an email to Ms Taylor and Ms Reese, raising concerns about his roster and his treatment in the workplace.

8. On or around February 2024:

Form 24 – Notice to admit facts

Industrial Relations Act 2016, section 989

Industrial Relations (Tribunals) Rules 2011, rules 41, 49, 108 and 113

Applicant/Appellant:	Cory Lea Shepherd
-----------------------------	-------------------

v

Respondent:	Workers' Compensation Regulator
--------------------	---------------------------------

PLEASE NOTE: If there are more than two parties to this application, please complete a **Form 1 – Parties list** and file it with this form.

To:	Workers' Compensation Regulator Attention: Ms Renee Matheson, Senior Appeals Officer 150 Mary Street, Brisbane QLD 4001 Renee.Matheson@oir.qld.gov.au
------------	--

Take notice that the [] applicant **[X] appellant** [] respondent in this proceeding proposes to prove the facts specified below, and if you do not within **14 days** serve a notice on the [] applicant **[X] appellant** [] respondent disputing the facts you are taken to admit, for this proceeding only, the facts specified in this notice.

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
PART ONE - PRELIMINARY: THE ROLE, THE EMPLOYMENT AND THE HOURS		
A	THE ROLE, AND WHAT IT REQUIRED	
1	The document at Annexure A, Tab 1 is a role description for the position of Administration Officer, Switchboard Services, Logan Hospital, which states the classification as "A03". (Annexure A, Tab 1)	Admitted
2	That role description states: "The occupant of this position is required to work continuous shift work over the full 24-hour period, 7 days a week". (Annexure A, Tab 1)	Admitted
3	That role description states: "This position reports to the Switchboard Manager, Corporate Services, Logan Hospital". (Annexure A, Tab 1)	Admitted
4	That role description names the contact for the position as "Chloe Taylor". (Annexure A, Tab 1)	Admitted
5	That role description states, as a key responsibility: "Maintain call queues to minimum at all times". (Annexure A, Tab 1)	Admitted
6	That role description states, as a key responsibility: "Collate information and maintain Omnivista database and SharePoint to ensure information held within Switchboard Services is accurate and appropriate". (Annexure A, Tab 1)	Admitted
7	That role description states, as a key responsibility: "Provide a service to support hospital staff in the allocation, coordination, and fault repair of all pager units for the hospital. This includes allocating pagers to hospital staff and submitting paging units for repair, maintaining database and registers with accurate and current information". (Annexure A, Tab 1)	Admitted
8	That role description states, as a key responsibility: "Participate in the Emergency Response process by receiving emergency response notifications and distributing them to the appropriate response groups, dependent on the category of emergency, as per emergency code procedures, strictly adhering to protocols and timeframes". (Annexure A, Tab 1)	Admitted
9	That role description states, as a key responsibility: "Maintain discretion and exercise judgement where necessary to resolve problems within the scope of your role; in situations where precedence have not been set and procedures not defined". (Annexure A, Tab 1)	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
10	That role description states, as a key responsibility: "The ability to multitask and operate under pressure, particularly where high volume call traffic is concerned". (Annexure A, Tab 1)	Admitted
11	That role description states, as a key responsibility: "Ability to work effectively as an individual with limited supervision to meet deadlines and establish work priorities, and work as a member of a multi-disciplinary team in a changing environment". (Annexure A, Tab 1)	Admitted
12	That role description states, as a key responsibility: "Follow defined service quality standards, occupational health and safety policies and procedures relating to the work being undertaken to ensure high quality, safe services and workplaces". (Annexure A, Tab 1)	Admitted
13	That role description states, under mandatory requirements: "The position is a continuous shift working role. You must be able to work a roster which covers multiple shifts over a 24/7 period". (Annexure A, Tab 1)	Admitted
14	Metro South Hospital and Health Service approved three movement forms recording changes to the Appellant's working hours, dated 27 February 2026, 17 April 2026 and 9 June 2026, each approved by Mr Scott Hughes as delegate. (Annexure A, Tabs 17-19)	Admitted
15	Each of those three movement forms records the Appellant's shift arrangements as "Continuous Shift Worker". (Annexure A, Tabs 17-19)	Admitted
16	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant ceased to be a continuous shift worker at any time before 18 June 2024.	Admitted
B	THE APPELLANT'S EMPLOYMENT, AND THE 17 JUNE 2020 AGREEMENT	
17	The Appellant signed an agreement allowing an 8-hour break between shifts on 17 June 2020. (Annexure A, Tab 25)	Admitted
18	Review Decision 69983 of the Workers' Compensation Regulator, dated 24 October 2024, records the Appellant's submission that the 8-hour agreement "was no longer fit for purpose since your transition from casual employment to full-time". (Annexure A, Tab 25)	Admitted
19	That decision records the Appellant's submission that "since your commencement, you have signed new terms and working arrangements as a full-time employee". (Annexure A, Tab 25)	Admitted
20	That decision records the employer's confirmation that there had been a "change to your employment contract and adjustments in your working hours" since 17 June 2020. (Annexure A, Tab 25)	Admitted
21	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the 8-hour agreement of 17 June 2020 was reviewed, re-executed or re-confirmed at any time between 17 June 2020 and 18 March 2024.	Admitted
22	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was informed, at any time before 1 May 2024, that the 8-hour agreement of 17 June 2020 could be terminated by him.	Admitted
23	Review Decision 69983 records that Ms Sandra Johnstone was the Switchboard Line Manager as at 8 December 2021. (Annexure A, Tab 25)	Admitted
24	That decision records that Ms Danielle Cook was the "previous Switchboard Manager", and that "Ms Taylor was subsequently appointed to the Switchboard Manager role". (Annexure A, Tab 25)	Admitted
25	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor was the Switchboard Manager on 17 June 2020.	Admitted
C	THE HOURS THE APPELLANT SOUGHT, AND OBTAINED	
26	On 7 August 2023 at 12:21 pm the Appellant sent an email to Ms Chloe Taylor, Ms Tammy Reese, Ms Patricia Conaghan and Ms Tracey Smith, marked of High importance, which states: "Furthermore, to meet the demands and the additional hours of the department both Patricia Conaghan and I would like to formally adhoc an additional 2 shifts per fortnight." (Annexure A, Tab 2)	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
27	That email sets out clause 11.7 of the applicable agreement, headed "Additional Permanent Hours for Part-time Employees". (Annexure A, Tab 2)	Admitted
28	On 8 August 2023 at 4:15 pm Ms Reese sent an email to the Appellant which states: "With regards to an additional shift to replace the shift you did not work Monday due to a rostering error I believe Chloe offered you the shift tomorrow Wednesday 9th 0700-1500, thus can I ask if you are interested in picking up that shift? I believe you will then have 8 shifts this fortnight if you were to pick up that shift, thus can I ask were you looking for another shift on top of those 8 to replace the shift missed today also?" (Annexure A, Tab 2)	Admitted
29	On 8 August 2023 at 6:06 pm the Appellant sent an email to Ms Reese which states: "I can confirm that I will be in tomorrow 0700-1500 9th August. I was also looking to pick up another shift if possible." (Annexure A, Tab 2)	Admitted
30	On 31 August 2023 the Appellant provided to Ms Taylor a written application headed "Request to Increase Working Hours to Full Time Rotational Roster". (Annexure A, Tab 4)	Admitted
31	That application states: "I have also expressed my willingness to take on additional night shifts as part of the roster and advocacy to become a union representative for the switchboard department." (Annexure A, Tab 4)	Admitted
32	That application of 31 August 2023 records, in the same sentence, the Appellant's advocacy to become a union representative for the switchboard department and his willingness to take on additional night shifts. (Annexure A, Tab 4)	Admitted
33	On 4 September 2023 the Appellant sent an email to Ms Reese which states: "I confirm that I am able and willing to work any roster that is presented to me, including the current schedule with full 24-hour availability." (Annexure A, Tab 3)	Admitted
34	That email states: "I have no issues with shift work." (Annexure A, Tab 3)	Admitted
35	That email attached a draft roster spreadsheet prepared by the Appellant. (Annexure A, Tab 3)	Admitted
36	On 8 September 2023 at 11:42 am Ms Reese sent an email to the Appellant which states: "I am glad to hear things seem to be going well with Chloe and I am also glad to hear you applied for the additional shifts through the recent EOI." (Annexure A, Tab 3)	Admitted
37	On 27 September 2023 at 1:52 pm Ms Taylor sent an email to the Appellant with the subject "Approved - Permanent Full Time FTE" which states: "Just giving you an update on your application for Permanent Fulltime hours, I am very pleased to advise you that this has been approved." (Annexure A, Tab 5)	Admitted
38	That email states: "happy to commence Full-time hours from the 16th October 2023". (Annexure A, Tab 5)	Admitted
PART TWO - STRESSOR 1		
D	STRESSOR 1(a) - THE DATABASE, THE DIRECTIVES ISSUED WITHOUT CONSULTATION, AND THE MATTERS RAISED IN MAY 2024	
39	On 18 July 2023 at 12:56 pm Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, sent an email to the Appellant and the Switchboard team, subject "Hello & Update", which states: "My current role is a project role for the Switchboard team. It is a temporary position that predominantly focuses on fixing up the database that switchboard utilises." (Annexure A, Tab 1A)	Admitted
40	That email states: "While I am fixing up the database and all of its entries, I will be removing everyone's access to the database." (Annexure A, Tab 1A)	Admitted
41	That email states that Ms Stibbard's working hours were "every Tuesday and second Monday, 8:00 - 16:00". (Annexure A, Tab 1A)	Admitted
42	That email states that a person wanting an entry updated was to "contact me directly, either via email or extension". (Annexure A, Tab 1A)	Admitted
43	That email states that if an entry was needed on a day Ms Stibbard was not present and was urgent, it was to be sent to Ms Taylor. (Annexure A, Tab 1A)	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
44	That email states that a request made "after hours (overnights, on the weekend or public holiday)" would "have to wait until either Chloe or myself are back". (Annexure A, Tab 1A)	Admitted
45	That email states: "I have also removed the Contact & Number Changes book out of the room, as I would prefer, for now, to be sent all changes to my email." (Annexure A, Tab 1A)	Admitted
46	Review Decision 69983 records: "Ms Ellen Stibbard, Switchboard Telecommunications Coordinator, emailed the staff members on 18 July 2023 to provide an update with respect to her role." (Annexure A, Tab 25)	Admitted
47	That decision records: "She explained her role was a project role, which was a temporary position that focused on fixing the database used by the switchboard." (Annexure A, Tab 25)	Admitted
48	That decision records: "She informed that while she fixed it, she would be removing everyone's access to it, and asked for anyone who needed to amend, add or remove entries, to directly contact her or Ms Taylor." (Annexure A, Tab 25)	Admitted
49	On 15 April 2024 at 12:39 pm Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff including the Appellant, with the subject "Afterhours Oncall Process - Switchboard". (Annexure A, Tab 6)	Admitted
50	That email states: "Process during office hours remains the same, please contact myself through switch/office or mobile unless otherwise advised." (Annexure A, Tab 6)	Admitted
51	That email states: "This new process is effective from today." (Annexure A, Tab 6)	Admitted
52	That email states: "You will see that Ellen and myself have added Afterhours on call, the days that are highlighted in purple show who is on call after hours." (Annexure A, Tab 6)	Admitted
53	Ms Taylor signed that email as "A/Switchboard Manager". (Annexure A, Tab 6)	Admitted
54	Review Decision 69983 records: "On 19 April 2024, Ms Taylor emailed the team and expressed that due to errors being made with respect to data entry, a new process was to be followed which included more checks to ensure accuracy of data entry." (Annexure A, Tab 25)	Admitted
55	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that access to the database used by the Switchboard was restored to the Appellant at any time before 18 June 2024.	Admitted
56	On 3 May 2024 at 3:06 pm Vivian Kwok, MASPER Registrar, sent an email to Ms Taylor, copied to Dr Pan Jane Wong, with the subject "Switchboard issues 2nd and 3rd May 2024", which states: "I've been requested to email you with the list of switchboard issues from yesterday and today". (Annexure A, Tab 8B)	Admitted
57	That email lists five occasions on 2 and 3 May 2024, being 2 May 2024 at 14:47, and 3 May 2024 at 10:00 am, 10:22 am, 11:43 am and 14:46. (Annexure A, Tab 8B)	Admitted
58	That email records of the occasion at 14:46 on 3 May 2024: "MET call team called x5290 asking where MET call was located 'VHUB' - switchboard could not tell them where VHUB was. Had to be redirected by MASPER". (Annexure A, Tab 8B)	Admitted
59	On 8 May 2024 at 5:28 pm Vivian Kwok sent a further email to Ms Taylor, copied to Dr Wong, with the subject "Re: Switchboard issues 5 May, 7 May, and 8 May", which states: "Here are the switchboard issues 5th May to 8th of May". (Annexure A, Tab 8B)	Admitted
60	That further email lists four occasions, being 5 May 2024 at 14:45, 7 May 2024 at 0745, and 8 May 2024 at 8:53 am and 9:59 am. (Annexure A, Tab 8B)	Admitted
61	That further email records of the occasions on 8 May 2024 that a call was "incorrectly put through to MASPER" on each occasion. (Annexure A, Tab 8B)	Admitted
62	The email of Vivian Kwok of 8 May 2024 was sent on the fifth calendar day after her email of 3 May 2024.	Admitted
63	The email of Ms Taylor of 9 May 2024 at 9:20 am was sent on the sixth calendar day after the email of Vivian Kwok of 3 May 2024 at 3:06 pm.	Admitted
64	The interval between the email of Vivian Kwok of 3 May 2024 at 3:06 pm and the email of Ms Taylor of 9 May 2024 at 9:20 am is five days, eighteen hours and fourteen minutes.	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
65	On 9 May 2024 at 9:20 am Ms Taylor sent an email to Vivian Kwok, MASPER Registrar, and Dr Pan Jane Wong, subject "RE: Switchboard issues 5 May, 7 May, and 8 May", which states: "@Pan Jane Wong Can I please confirm your business hours so we can have this for our reference, it is not provided on the rosters. I have noticed your dect phone number #5997 is currently switched off." (Annexure A, Tab 8B)	Admitted
66	On 9 May 2024 at 10:15 am Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, subject "MASPER process", which states: "To try and eliminate this can I please ask that all calls that switch transfer to the MASPER phone #5223 are being introduced." (Annexure A, Tab 8B)	Admitted
67	Ms Taylor's email to Logan Switch of 9 May 2024 at 10:15 am states: "I have included below email trail for your reference. There have been many ongoing issues raised by the MASPER and the medical department about calls being transferred to the wrong medical teams." (Annexure A, Tab 8B)	Admitted
68	The occasions reported by Vivian Kwok on 3 and 8 May 2024 occurred while the after-hours on-call arrangement notified by Ms Taylor on 15 April 2024 was in force.	Admitted
69	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any communication was sent to Logan Switch or to the Switchboard staff concerning the occasions reported by Vivian Kwok at any time after 3 May 2024 and before 10:15 am on 9 May 2024.	Admitted
70	Review Decision 69983 records that in an email dated 23 August 2023 Ms Taylor "noted her start time would range between 6:00 to 9:00 am, and her finish time would range between 2:00 to 5:00 pm". (Annexure A, Tab 25)	Admitted
71	On 23 August 2023 at 2:18 pm Ms Taylor sent an email to Logan Switch, copied to Switchboard staff including the Appellant, with the subject "What's Chloe's Hours?!", which states: "I am fulltime and work flex hours - You may have noticed recently I am starting at different times in the morning and finish at different times in the afternoon." (Annexure A, Tab 30)	Admitted
72	That email states: "My hours would range from starting between 6-9am and finishing 2-5pm." (Annexure A, Tab 30)	Admitted
73	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor stated fixed office hours to the Switchboard staff at any time between 23 August 2023 and 17 May 2024.	Admitted
74	On 15 May 2024 at 1:15 pm the Appellant sent an email to Ms Taylor and Logan Switch, copied to Switchboard staff, Ms Reese and LBH_HR, with the subject "Office Hours and Departmental Directives", which states: "could you please share your office hours so the entire department can be aware of your regular schedule? There has been some noted inconsistency in your arrival and departure times". (Annexure A, Tab 9A)	Admitted
75	That email of the Appellant states: "please ensure that any directives and changes within the department is made in consultation with the team to ensure that any concerns can be appropriately addressed." (Annexure A, Tab 9A)	Admitted
76	On 15 May 2024 at 6:23 pm Ms Reese replied to the Appellant, copied to Ms Taylor and marked of High importance, stating that his email "did not demonstrate our iCARE2 value of Respect and did not comply with our Code of conduct". (Annexure A, Tab 9A)	Admitted
77	That reply of Ms Reese asked the Appellant to retract his email. (Annexure A, Tab 9A)	Admitted
78	On 15 May 2024 at 7:09 pm the Appellant replied to Ms Reese stating: "Requesting clarity on business hours is a reasonable question, especially when no one in the department can provide a definitive answer in response to directives to contact Chloe during office hours." (Annexure A, Tab 9A)	Admitted
79	On 21 May 2024 at 2:53 pm Ms Reese replied to the Appellant stating: "With regards to your concerns about having more clarity as to what are Chole's business hours I will follow up on the issues raised." (Annexure A, Tab 9B)	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
80	That reply of Ms Reese states: "can I ask was there one or more particular changes and/or directives where you had concerns about consultation and communication?" (Annexure A, Tab 9B)	Admitted
81	On 17 May 2024 at 9:30 am Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff, with the subject "Switchboard Manager - On call and Hours.", which states: "regardless of my start/finish times next week you are to please contact me through the day/afterhours either via switch, office or mobile." (Annexure A, Tab 9)	Admitted
82	That email states: "My office hours can vary due to having to take my girls to school in the morning, on the days that I do have school drop off I always let switch know that I will be in later between 0800-830am. Otherwise my hours are from 06:30-14:30." (Annexure A, Tab 9)	Admitted
83	That email of 17 May 2024 at 9:30 am states: "I will not be in the office until around 11am on Monday 20.05.2024". (Annexure A, Tab 9)	Admitted
84	That email states: "Moving forward so communication is clear for the team, I will be sending an email to switch to advise of any change to my office hours for the week." (Annexure A, Tab 9)	Admitted
85	On 18 June 2024 at 8:58 am Ms Taylor sent an email to Logan Switch, copied to Ms Reese and Ms Stibbard, with the subject "Good morning Team.", which states: "I am taking today off, and hopefully will be back tomorrow." (Annexure A, Tab 30A)	Admitted
86	That email of 18 June 2024 states: "I am sorry I haven't been there for you all over the past week." (Annexure A, Tab 30A)	Admitted
87	That email of 18 June 2024 states: "Ellen will not be in today, however Tammy is in the office if anything urgent." (Annexure A, Tab 30A)	Admitted
88	The office hours stated by Ms Taylor in her email of 17 May 2024 at 9:30 am concluded at 2:30 pm. (Annexure A, Tab 9)	Admitted
89	On 15 May 2024 at 11:47 am Ms Sue Marriott, Administration Officer, Integrated Respiratory Service, sent an email to Logan Switch, marked of High importance, which states: "Could you please amend your number registry/directory to show #8768 belongs to the Integrated Respiratory Service... We are not Respiratory Medical OPD and we do not have any doctors working out of this area." (Annexure A, Tab 11)	Admitted
90	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 15 May 2024 at 11:47 am at any time before 20 May 2024.	Admitted
91	On 20 May 2024 at 11:03 am Ms Marriott sent a further email to Logan Switch, marked of High importance, which states: "Just a courtesy reminder, we continue to get calls put through to us for Respiratory Medical Outpatients... we can not help patients or other clinical staff with OPD issues." (Annexure A, Tab 11)	Admitted
92	The email of Ms Marriott of 20 May 2024 at 11:03 am was sent on the fifth calendar day after her email of 15 May 2024 at 11:47 am. (Annexure A, Tab 11)	Admitted
93	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the email of Ms Marriott of 20 May 2024 at 11:03 am before 2:05 pm on that day.	Admitted
94	On 20 May 2024 at 2:05 pm the Appellant sent an email to Ms Taylor, marked of High importance, which states: "switchboard staff may not be aware of the clinics due to modifications to the Document: Outpatients Department - Clinic contact Details. on the 22nd of February 2024. I recommend a modification and review of the document." (Annexure A, Tab 11)	Admitted
95	That email of the Appellant was sent from the Logan Switch account. (Annexure A, Tab 11)	Admitted
96	That email of the Appellant was sent within the office hours Ms Taylor had stated to all Switchboard staff on 17 May 2024. (Annexure A, Tab 9)	Admitted
97	The Appellant's email of 20 May 2024 at 2:05 pm was sent three hours and two minutes after the email of Ms Marriott of that day at 11:03 am.	Admitted
98	The Appellant's email of 20 May 2024 at 2:05 pm was sent five days, two hours and eighteen minutes after the first email of Ms Marriott of 15 May 2024 at 11:47 am.	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
99	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was rostered to work after 2:05 pm on 20 May 2024.	Admitted
100	On 20 May 2024 at 4:30 pm Ms Taylor replied to the Appellant, stating: "Thank you for bringing this to my attention however this task was being actioned. I had discussed with Richard this morning about the update of outpatients respiratory/medical." (Annexure A, Tab 11)	Admitted
101	That reply of Ms Taylor states: "Taking note of your recommendation, we can also put the updated procedures out to the team for consultation before implementing." (Annexure A, Tab 11)	Admitted
102	Ms Taylor's reply of 20 May 2024 at 4:30 pm was sent two hours and twenty-five minutes after the Appellant's email of that day at 2:05 pm.	Admitted
103	That reply of Ms Taylor was sent two hours after the conclusion of the office hours she had stated to all Switchboard staff on 17 May 2024. (Annexure A, Tab 9)	Admitted
104	Ms Taylor's reply of 20 May 2024 at 4:30 pm states that the matter had been discussed "this morning", being the morning of 20 May 2024. (Annexure A, Tab 11)	Admitted
105	The Respondent's amended List of Documents dated 14 August 2026 does not list any document created on 20 May 2024 recording the discussion referred to in that reply.	Admitted
106	The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording a communication sent by Ms Taylor to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024.	Admitted
107	The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording a communication sent by Mr Parry to Ms Marriott, or to the Integrated Respiratory Service, on 20 May 2024.	Admitted
108	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Mr Parry communicated with Ms Marriott, or with the Integrated Respiratory Service, on 20 May 2024.	Admitted
109	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the document "Outpatients Department - Clinic contact Details" was amended at any time on or before 20 May 2024.	Admitted
110	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Switchboard staff were notified, at any time on or before 20 May 2024, of the modifications made to the document "Outpatients Department - Clinic contact Details" on 22 February 2024.	Admitted
111	On 13 May 2024 at 4:29 pm Ms Ellen Stibbard sent an email to the Switchboard team, subject "Switchboard After Hours On Call Manager PP24 13/5/24 - 26/5/24", which states: "Just advising you that I am on call after hours for Switch from today Monday 13/5/24 – Sunday 19/5/24. Chloe will then be on call from Monday 20/5/24 – Sunday 26/5/24. During business hours you are to still contact Chloe." (Annexure A, Tab 8C)	Admitted
112	Ms Stibbard's on-call roster email of 13 May 2024 was addressed to the Switchboard team and included Mr Richard Parry among its recipients. (Annexure A, Tab 8C)	Admitted
113	Ms Taylor's email of 17 May 2024 at 9:30 am headed "Switchboard Manager - On call and Hours." included Mr Richard Parry among its recipients. (Annexure A, Tab 9)	Admitted
E	STRESSOR 1(d) - THE SPECIAL PANDEMIC LEAVE APPLICATION OF FEBRUARY 2024	
114	The myHR leave request history for Process Reference 15480560 records: "Employee - Cory Shepherd : created draft", 20.02.2024, 11:24:48. (Annexure A, Tab 28)	Admitted
115	That history records: "Employee - Cory Shepherd : submitted request", 20.02.2024, 11:41:27. (Annexure A, Tab 28)	Admitted
116	That history records: "Reviewer - Chloe Donovan-Taylor : declined request", 21.02.2024, 12:23:43. (Annexure A, Tab 28)	Admitted
117	That history records: "Employee - Cory Shepherd : submitted request", 28.02.2024, 06:07:32. (Annexure A, Tab 28)	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
118	That history records: "Reviewer - Chloe Donovan-Taylor : declined request", 29.02.2024, 09:06:07. (Annexure A, Tab 28)	Admitted
119	That history records: "Employee - Cory Shepherd : submitted request", 29.02.2024, 11:07:28. (Annexure A, Tab 28)	Admitted
120	That history records: "Reviewer - Chloe Donovan-Taylor : approved request", 29.02.2024, 11:21:03. (Annexure A, Tab 28)	Admitted
121	That history records: "Manager - Tammy Reese : approved request", 01.03.2024, 16:05:08. (Annexure A, Tab 28)	Admitted
122	That history records the Appellant as having submitted the request on three occasions. (Annexure A, Tab 28)	Admitted
123	That history records Ms Taylor as having declined the request on two occasions. (Annexure A, Tab 28)	Admitted
124	The interval between the submission recorded at 11:07:28 on 29 February 2024 and the approval recorded at 11:21:03 on the same day is thirteen minutes and thirty-five seconds.	Admitted
125	The interval between the draft recorded at 11:24:48 on 20 February 2024 and the approval recorded at 16:05:08 on 1 March 2024 is ten days, four hours, forty minutes and twenty seconds.	Admitted
126	In that history Ms Taylor is identified as "Reviewer" and Ms Reese is identified as "Manager". (Annexure A, Tab 28)	Admitted
127	The Instrument of Human Resource Sub-Delegation, COVID-19 Pandemic Event - Paid Special Pandemic Leave, signed by Ms Noelle Cridland as A/Health Service Chief Executive on 23 November 2022 and effective as at 5 December 2022, sub-delegates "the power to approve/not approve paid Special Pandemic Leave in accordance with Directives 05/17 and 01/20 respectively, for this pandemic event (COVID-19) only, to a Band 9 delegate". (Annexure A, Tab 29)	Admitted
128	That Instrument states: "This Instrument does not permit the further sub-delegation of the powers outlined in (a) above." (Annexure A, Tab 29)	Admitted
129	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor was a Band 9 delegate at any time in February 2024.	Admitted
130	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Reese was a Band 9 delegate at any time in February or March 2024.	Admitted
131	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not identify the person who exercised the power sub-delegated by the Instrument of Human Resource Sub-Delegation in respect of Process Reference 15480560.	Admitted
132	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 14(c): "Ms Taylor asked the appellant to submit a Special Pandemic Leave request via MyHR and attach a statutory declaration or photo evidence of his test".	Admitted
133	That amended statement of facts and contentions states at paragraph 14(d): "Ms Taylor did decline the application because on her assessment, the required statutory declaration was not attached to the MyHR submission. Ms Taylor asked the appellant to resubmit".	Admitted
134	That amended statement of facts and contentions states at paragraph 14(e): "says that a review indicates that in fact, the attachments were present on the appellant's submission".	Admitted
135	That amended statement of facts and contentions states at paragraph 14(f): "says this was a matter of human error by Ms Taylor on the background of high work demands surrounding the management of staff with COVID-19".	Admitted
136	Review Decision 69983 records that on 20 February 2024 the Appellant messaged Ms Taylor stating he had tested positive for Covid, and that Ms Taylor "requested that you send it to her so she could submit it in MyHR". (Annexure A, Tab 25)	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
137	Review Decision 69983 records: "On 21 February 2024 Ms Taylor then messaged you and informed she had to decline your request in MyHR because the minimum period for Covid leave was 5 days for a positive staff member." (Annexure A, Tab 25)	Admitted
138	That decision records that Ms Taylor "noted the statutory declaration you provided was sufficient evidence" and "requested for you to resubmit your leave days". (Annexure A, Tab 25)	Admitted
139	That decision records that the Appellant "messaged you were confused about why your amended leave request was declined" and "noted you did everything as required". (Annexure A, Tab 25)	Admitted
140	The myHR submissions report produced by Metro South Health as Item 11 of the notice of non-party disclosure records a Smart Leave Request with process number 15480560, submitted on 20 February 2024, with an effective date of 20 February 2024, a processing date of 1 March 2024, and a status of "Completed". (Annexure A, Tab 15)	Admitted
141	That report records the initiator of that Smart Leave Request as the Appellant. (Annexure A, Tab 15)	Admitted
142	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any other Switchboard employee was required to submit a Special Pandemic Leave request personally through myHR in February 2024.	Admitted
F	STRESSOR 1(b) - THE COMMUNICATION BOOK, AND MS TAYLOR'S EMAIL OF 6 JUNE 2023	
143	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 12(a): "admits that the Ms Taylor [sic] did remove pages from the Communication Book on or around 6 June 2023".	Admitted
144	That amended statement of facts and contentions states at paragraph 12(b): "says this event was reported from Ms Taylor to Ms Reese on 6 June 2023 via email".	Admitted
145	On 6 June 2023 at 4:05 pm Ms Taylor sent an email to Ms Reese with the subject "Fwd: Communication Book Update". (Annexure A, Tab 1B)	Admitted
146	That email states: "I was not aware of who put this entry in at the time but I took it out last week as it was clearly an indirect dig at the team and there is already a procedure to follow with this certain entry." (Annexure A, Tab 1B)	Admitted
147	That email states: "I just feel like it's being used as a 'burn book' more than a professional tool that switchboard can use to communicate." (Annexure A, Tab 1B)	Admitted
148	Beneath it in the same document is Ms Taylor's email to Logan Switch of 6 June 2023 at 9:57 am, subject "Communication Book Update", copied to Switchboard staff including the Appellant. (Annexure A, Tab 1B)	Admitted
149	That email of 9:57 am states: "This is not used to simply put your point across or make any indirect comments towards the team." (Annexure A, Tab 1B)	Admitted
150	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not identify the entry Ms Taylor removed from the Communication Book, or its author.	Admitted
151	That amended statement of facts and contentions, as presently constituted, does not allege that the removed page has been located, or that any copy of it exists.	Admitted
152	That amended statement of facts and contentions, as presently constituted, does not allege that any entry made by the Appellant remains in the Communication Book.	Admitted
153	That amended statement of facts and contentions, as presently constituted, does not allege that the Communication Book ceased to be in the possession of Metro South Hospital and Health Service at any time during the Appellant's employment.	Admitted
154	The Respondent's amended List of Documents dated 14 August 2026 does not list the Communication Book, nor any page or entry from it.	Not admitted
G	STRESSOR 1(c) - THE MATTERS RAISED IN AUGUST AND SEPTEMBER 2023, AND THE RESPONSE	
155	The Appellant's email of 7 August 2023 at 12:21 pm states: "Please give me some space and stop with any further communication as I have had enough of it." (Annexure A, Tab 2)	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
156	On 7 August 2023 at 1:43 pm Ms Taylor replied to the Appellant, copied to Ms Reese and Ms Smith, stating: "My sincere apologies about your rostered Monday 7th 0700-1500 shift, I can confirm this was an oversight." (Annexure A, Tab 4)	Admitted
157	That email of Ms Taylor states: "Would you like me to roster you off tomorrow Tuesday 8th 0700-1500 to give you the required rest period". (Annexure A, Tab 4)	Admitted
158	On 7 August 2023 at 3:13 pm Ms Reese replied to the Appellant stating: "As Chloe is your current line manager and as such you are required to continue to communicate with Chloe for work related issues, shift concerns, leave, etc." (Annexure A, Tab 2)	Admitted
159	On 7 August 2023 at 5:11 pm Ms Reese sent an email to Ms Taylor attaching a document titled "Rostered shifts Cory S. past 8 months.xlsx", which states: "can I ask if you can send me an email of your recent communication with Cory about contacting yourself about missed shifts, as I could not find a copy of this email." (Annexure A, Tab 4)	Admitted
160	On 29 August 2023 at 6:57 pm Ms Reese sent the Appellant an email attaching HR Policy E12 - Individual Employee Grievances, and setting out how a grievance could be submitted. (Annexure A, Tab 3)	Admitted
161	On 4 September 2023 the Appellant replied to Ms Reese stating: "I have also spoken to Chloe. We are seemingly on the path to working in a beneficial way and hopefully will not need to go through this process." (Annexure A, Tab 3)	Admitted
H	THE PROCESS FOR NOTIFYING UNAVAILABILITY FOR A ROSTERED SHIFT	
162	On 14 May 2024 at 12:08 pm Ms Taylor sent an email to the Appellant, copied to Ms Reese, with the subject "Sick leave 14.05.24", which states: "in business hours you are to follow the correct process and speak to me directly if its regarding emergent leave, you can contact me either through switch or my office/mobile." (Annexure A, Tab 10)	Admitted
163	The email of Ms Taylor of 15 April 2024 states that during office hours the Appellant was to contact her "through switch/office or mobile". (Annexure A, Tab 6)	Admitted
164	The email of Ms Taylor of 14 May 2024 at 12:08 pm states that the Appellant could contact her "either through switch or my office/mobile". (Annexure A, Tab 10)	Admitted
165	Each of those two emails identifies the Switchboard as a means by which the Appellant could contact Ms Taylor. (Annexure A, Tab 10)	Admitted
166	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was informed, at any time before 14 May 2024, that notifying his unavailability by telephoning the Switchboard did not comply with the process required of him.	Admitted
I	STRESSOR 1(g) - THE UNION DELEGATE, AND THE CONSULTATION ON ROSTERS	
167	The Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital, December 2024, states: "In accordance with Clause 6.2 of the Hospital and Health Service General Employees (Queensland Health) Award - State 2015, agreement between MSH and the union, or MSH and the majority of employees affected must occur prior to changes to a shift roster." (Annexure A, Tab 23)	Admitted
168	That document states: "Agreement is defined as obtaining consent from the majority (50+1%) of affected employees, with all affected employees invited to cast their vote via an online Ballot Form." (Annexure A, Tab 23)	Admitted
169	The Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital states: "On 22 July 2021, Metro South Health (MSH) management, affected staff and Together Queensland representatives commenced negotiating a new roster for Switchboard Services, Logan Hospital." (Annexure A, Tab 22)	Admitted
170	That Consultation Paper states: "In August 2024, Switchboard Services, Logan Hospital was realigned from Health Information Management Services (HIMS), MSH to Corporate Services, LBHS, MSH." (Annexure A, Tab 22)	Admitted
171	That Consultation Paper states that the proposed roster "is intended to introduce a more equitable roster for Switchboard Services, Logan Hospital staff". (Annexure A, Tab 22)	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
172	That Consultation Paper states that the proposed roster includes: "Redistribution of nights for greater equity based on FTE." (Annexure A, Tab 22)	Admitted
173	That Consultation Paper states that the proposed roster includes: "Rotational roster for predictability and equity to all staff ensuring fair distribution of penalties." (Annexure A, Tab 22)	Admitted
174	That Consultation Paper states that the proposed roster includes: "An additional eight (8) hour shift (0700-1500) on Saturdays, to assist with call volume." (Annexure A, Tab 22)	Admitted
175	That Consultation Paper states that the proposed roster includes: "Extension of the current weekday (Mon-Fri) 0900-1400 five (5) hour shift to a 0700-1500 eight (8) hour shift." (Annexure A, Tab 22)	Admitted
176	The Consultation outcome document states that on 14 November 2024 a consultation document and proposed roster for Switchboard Services, Logan Hospital was released for consultation, and that affected staff, unions and stakeholders were invited to provide feedback by 8 December 2024. (Annexure A, Tab 23)	Admitted
177	That document states that seventeen affected employees were invited to cast a vote, that seventeen votes were received, that fourteen "Yes" votes and three "No" votes were received, and that the proposed rosters were approved with a date effective of 20 January 2025. (Annexure A, Tab 23)	Admitted
178	On 3 November 2025 Mr Heath Moran, Organiser, Together Queensland, sent an email to Ms Carolyn Jeffrey, Ms Patricia Conaghan and the Appellant which states: "Firstly, congratulations to you all on being endorsed to become workplace delegates!" (Annexure A, Tab 24)	Admitted
179	The Appellant was endorsed as a workplace delegate on or about 3 November 2025. (Annexure A, Tab 24)	Admitted
180	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that agreement under clause 6.2 of the Hospital and Health Service General Employees (Queensland Health) Award - State 2015 was obtained before the rostering of the Appellant's shifts on 17 and 18 March 2024.	Admitted
181	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that a ballot of affected employees was conducted before the change to after-hours on-call arrangements notified by Ms Taylor on 15 April 2024.	Admitted
PART THREE - STRESSOR 2		
J	STRESSOR 2 - THE PAY CORRECTION, AND THE THREAD "COREY SHEPHERD 388372 PAY ISSUES"	
182	The Respondent's disclosure contains an email thread with the subject "Corey Shepherd 388372 Pay issues". (Annexure A, Tab 12)	Admitted
183	The first message in that thread is dated 3 May 2024, is from PayrollMetroSouth, is addressed to Ms C Taylor, and is copied to the Appellant. (Annexure A, Tab 12)	Admitted
184	That message bears the signature block of Elaine Grant, Client Service Officer, Metro South Payroll Team, Payroll Transactional Services. (Annexure A, Tab 12)	Admitted
185	That message states: "Corey has wages top up on fortnight 05.02.24 for 0.95mins as he is under his contracted hours so it is topping up the missing wages from his RDO balance." (Annexure A, Tab 12)	Admitted
186	That message states: "This will be due to having a 7hr shift on 09.02.24 instead of an 8hr shift. AVAC PRN 15397775." (Annexure A, Tab 12)	Admitted
187	That message states: "The same has happened for the next fortnight 19.02.24 due to 28.02.24 shift AVAC PRN 15605601 has this shift as 7hrs topping up 0.95 for missing hour." (Annexure A, Tab 12)	Admitted
188	That message states: "Fortnight 18.03.24 is the opposite and has too many ordinary shifts for the fortnight resulting in wage reduction of 7.55hrs as one of the shifts needs to be overtime." (Annexure A, Tab 12)	Admitted
189	That message states: "Fortnight 01.04.24 is the same, 0.95hrs over contracted 76hrs needs to be overtime." (Annexure A, Tab 12)	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
190	That message states: "Please submit an AVAC to correct these shifts for each fortnight so Cory is paid corrected and his RDO balance will then be amended." (Annexure A, Tab 12)	Admitted
191	The thread contains a message dated 10 May 2024 at 2:21 pm from the Appellant, addressed to PayrollMetroSouth and to Ms E Grant. (Annexure A, Tab 12)	Admitted
192	The thread contains a message dated 13 May 2024 at 8:21 am from PayrollMetroSouth, addressed to the Appellant. (Annexure A, Tab 12)	Admitted
193	That message of 13 May 2024 states: "I cannot see that any of the issues below have been corrected. Please speak to your Line Manager to have them corrected with an AVAC submitted through My HR as this will also be affecting your RDO balances as well as your pay." (Annexure A, Tab 12)	Admitted
194	The thread contains a message dated 21 May 2024 at 12:33 pm from Ms C Taylor, addressed to the Appellant, with the subject "RE: Corey Shepherd 388372 Pay issues". (Annexure A, Tab 13)	Admitted
195	That message of 21 May 2024 states: "Just letting you know that I am still I am waiting payroll confirmation about a few of these payroll issues and as soon as I do get that confirmation, I will submit an AVAC for next pay run. I will let you know PRN once it has been submitted." (Annexure A, Tab 13)	Admitted
196	The Respondent's disclosure contains a message dated 28 May 2024 at 8:36 am from Ms C Taylor, addressed to the Appellant and copied to Ms T Reese, with the subject "Validation of Claims older than 3 months - Please sign". (Annexure A, Tab 14)	Admitted
197	That message of 28 May 2024 states: "Please find attached Validation of claims older than 3 months, please sign and return to be as soon as possible so I can escalate for delegate approval." (Annexure A, Tab 14)	Admitted
198	The myHR submissions report produced by Metro South Health as Item 11 of the notice of non-party disclosure records seven submissions for the Appellant in the period 1 February 2024 to 31 May 2024. (Annexure A, Tab 15)	Admitted
199	That report records five of those seven submissions as an "Attendance Variation and Allowance Claim (AVAC)". (Annexure A, Tab 15)	Admitted
200	That report records the initiator of each of those five Attendance Variation and Allowance Claims as "Donovan-Taylor, Chloe". (Annexure A, Tab 15)	Admitted
201	That report records the initiator of no Attendance Variation and Allowance Claim in that period as the Appellant. (Annexure A, Tab 15)	Admitted
202	That report records a submission with process number 16328886 as an Attendance Variation and Allowance Claim submitted on 15 May 2024, with a processing date of 16 May 2024, and a status of "Completed". (Annexure A, Tab 15)	Admitted
203	That report records a submission with process number 16450619 as an Attendance Variation and Allowance Claim submitted on 28 May 2024, with an effective date of 30 March 2024, a processing date of 30 May 2024, and a status of "Part Completed". (Annexure A, Tab 15)	Admitted
204	That report records the status of every other Attendance Variation and Allowance Claim in the period as "Completed". (Annexure A, Tab 15)	Admitted
205	That report records the following process numbers with the following submission dates: 15325947, submitted 6 February 2024; 15480560, submitted 20 February 2024; 15848692, submitted 27 March 2024; 15849573, submitted 27 March 2024; 15969838, submitted 9 April 2024; 16328886, submitted 15 May 2024; and 16450619, submitted 28 May 2024. (Annexure A, Tab 15)	Admitted
206	In that report, process numbers increase as submission dates increase. (Annexure A, Tab 15)	Admitted
207	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 20(c): "any discrepancies or errors were remedied in a timely manner".	Admitted
208	That amended statement of facts and contentions states at paragraph 20(f): "there are no outstanding underpayments for the appellant".	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
209	That amended statement of facts and contentions states at paragraph 21(c): "says Ms Taylor submitted the AVAC on 28 May 2024".	Admitted
210	Neither AVAC PRN 15397775 nor AVAC PRN 15605601 appears in the myHR submissions report produced by Metro South Health as Item 11 of the notice of non-party disclosure. (Annexure A, Tab 15)	Admitted
PART FOUR - STRESSOR 3, INCLUDING THE ROSTERING ERRORS AND CHANGES		
K	STRESSOR 3 - THE ROSTERING ERRORS AND CHANGES, AND THE EMPLOYER'S KNOWLEDGE OF FATIGUE BEFORE 18 JUNE 2024	
211	On 26 April 2024 at 1:52 pm Ms Reese sent an email to the Appellant with the subject "Roster Concerns", referring to a meeting on 16 April 2024 at which the Appellant raised a roster line ending with night shifts followed by three days off and then returning to night shifts. (Annexure A, Tab 7)	Admitted
212	That email states that Ms Taylor "was working to fix this error and would get in touch with you about what alternative shifts she could offer". (Annexure A, Tab 7)	Admitted
213	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor got in touch with the Appellant about alternative shifts following the meeting of 16 April 2024.	Admitted
214	On 1 May 2024 at 1:18 pm the Appellant sent an email to Ms Reese with the subject "Re: Roster Concerns" referring to section 4, clause 10.4.1 of the Operations Manual and stating: "This section includes a toolkit required by management to manage fatigue and implement appropriate protocols and adhere to the workplace health and safety act." (Annexure A, Tab 7)	Admitted
215	That email states: "I forwarded the toolkit to Chloe last week for review and action but have yet to receive feedback". (Annexure A, Tab 7)	Admitted
216	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that Ms Taylor reviewed the toolkit referred to in that email, or provided any feedback on it, at any time before 18 June 2024.	Admitted
217	On 8 May 2024 at 9:08 am Ms Reese replied to the Appellant stating: "Thanks for raising these observations and concerns. I am following up with regards to these with HR for further advice and I will get back to you asap with a response." (Annexure A, Tab 7)	Admitted
218	On 10 May 2024 at 2:08 pm Ms Reese sent an email to Mr Mackenzie Pritchard of Human Resources forwarding the Appellant's email of 1 May 2024, which states: "I think he is trying to raise that he has concerns over how his manager is rostering for the Switchboard team and how it is impacting on staff fatigue, or more specifically his fatigue." (Annexure A, Tab 8)	Admitted
219	That email states: "as per Cory's second extract detailing the Roster Risk assessment Matrix, Chloe and I have run through this and we say at best there would be a rating of 11 which is moderate". (Annexure A, Tab 8)	Admitted
220	That email states: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters". (Annexure A, Tab 8)	Admitted
221	That email of Ms Reese to Mr Mackenzie Pritchard of 10 May 2024 states: "Cory's roster will not be considered, however Cory is not yet aware of this as we cannot advise what is the roster we are planning on going with before we send out the implementation plan for this business case for change". (Annexure A, Tab 8)	Admitted
222	On 20 May 2024 at 4:07 pm Ms Reese sent an email to LBH_HR which states: "I am just following up on this query I raised a little while ago in relation to a email I had received from a staff member about our rostering practices. Thus if someone might be able to give me a call regarding these staff concerns, that would be great." (Annexure A, Tab 8)	Admitted
223	That email of Ms Reese to LBH_HR attached the document "qh-gdl-401-3.3", being the Queensland Health Fatigue Risk Management Systems Implementation Guideline. (Annexure A, Tab 8A)	Admitted
L	STRESSOR 3 - THE BREAK OF 17-18 MARCH 2024, THE 2020 AGREEMENT, AND THE LEAVE OF 19 MARCH 2024	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
224	By email dated 7 July 2026 Ms Lyndelle Forrest, Senior Consultant, Human Resources, Logan and Beaudesert Health Service, wrote to the Appellant stating that the rostering "currently provides more than 10-hour breaks between shifts". (Annexure A, Tab 21)	Admitted
225	That email states: "acknowledge you also signed an 8 hour agreement on 17 June 2020, which allows you to work with only an 8 hour break, however this is only applied where staff initiated shift swaps have occurred." (Annexure A, Tab 21)	Admitted
226	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 22(a): "says the shift was separated by only a 7-hour break (rather than an 8-hour break) says that this was a result of human error and not intentional or repeated".	Admitted
227	The shift commencing at 06:00 on 18 March 2024 fell on a Monday.	Admitted
228	A register titled "2024 Emergency Code Register" records, for 17 March 2024, eight entries, including "MET CALL WARD 2H BED 7" at 19:16, "CODE BLUE WARD 2H BED 7" at 19:20 and "MET CALL WARD 2Q BED 5" at 21:16. (Annexure A, Tab 31)	Not admitted
229	That register records, for 18 March 2024: "CODE GREY QAS TRIAGE AIRLOCK" at 8:48; "MET CALL WARD 6A BED 8" at 9:20; "MET CALL WARD 3DR BED 14" at 11:31; "CANCELLED MET CALL WARD 3DR BED 14" at 11:32; "NEONATAL MET CALL THEATRE 2" at 11:35; and "NEONATAL MET CALL BIRTH SUITES 5" at 13:09. (Annexure A, Tab 31)	Not admitted
230	Six of the entries recorded in that register for 18 March 2024 bear times between 6:00 and 14:00.	Not admitted
231	That register records, for 19 March 2024 at 11:34, "MET CALL WARD 2I BED 20" with the notation "CALLED VIA SWITRCHBOARD" [sic]. (Annexure A, Tab 31)	Not admitted
232	That amended statement of facts and contentions states at paragraph 22(e): "says in June 2020, the Appellant signed an agreement allowing an 8-hour break between shifts".	Admitted
233	That amended statement of facts and contentions states at paragraph 22(b): "says that the appellant could refuse shifts at anytime".	Admitted
234	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the consecutive shifts of 17 and 18 March 2024 arose from a staff initiated shift swap.	Admitted
235	The Leave Takings Report produced by Metro South Hospital and Health Service in respect of 19 March 2024 records the Leave Category as "Sick", the Leave Type as "Sick Leave", the Time Code as "SCK", the Leave Taken as 7.60 hours, and the Leave Status as "APPROVED". (Annexure A, Tab 16)	Admitted
236	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 24(a): "says that the appellant took leave on 19 March 2024 but says this was paid leave".	Admitted
237	That amended statement of facts and contentions states at paragraph 24(b): "says that pursuant to clause 18.10 of the Award, the appellant is not entitled to fatigue leave, because he was not performing overtime".	Admitted
238	That amended statement of facts and contentions states at paragraph 27: "The respondent contends that any management action involved in the causation of any injury to the Plaintiff [sic] was reasonable management action taken in a reasonable way pursuant to s 32(5) WCRA."	Admitted
239	Review Decision 69983 records that the policy regarding fatigue leave following weekends and rostered days off is dated June 2020. (Annexure A, Tab 25)	Admitted
240	That decision records: "The policy notes that many problems can be overcome regarding fatigue leave by either not rostering the employee who is on call for the first shift of the following day and not rostering on call an officer who is rostered for the first shift on the following day." (Annexure A, Tab 25)	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
241	That decision records that section 23 of the Hospital and Health Service General Employees (Queensland Health) Award provides that "where an employee is in receipt of the additional week's leave as prescribed in clause 19.2(a) and is rostered off on Easter Saturday, Easter Sunday, Show Day or Labour Day, such employee shall be paid an additional day's wage or be granted a day's holiday in lieu at a time to be mutually arranged, but this is not applicable where an employee is not ordinarily required to work on a Saturday or Sunday". (Annexure A, Tab 25)	Admitted
M	STRESSOR 3 - THE FATIGUE LEAVE REQUEST OF 8 APRIL 2024, THE DELAY, AND THE REFUSAL OF 1 MAY 2024	
242	Review Decision 69983 records: "You emailed Ms Taylor on 8 April 2024 and requested a review of your payment for the pay period between 8 March 2024 and 31 March 2024." (Annexure A, Tab 25)	Admitted
243	That decision records that in that email the Appellant "noted the Hospital and Health Service General Employees (Queensland Health) Award stipulated in part 5 section 15 that unless there was a mutual agreement of regular rosters, employees were entitled to a minimum 10-hour break". (Annexure A, Tab 25)	Admitted
244	That decision records that Ms Taylor replied on 9 April 2024 and "added she also escalated your enquiry regarding fatigue leave to Human Resources to confirm policies around this". (Annexure A, Tab 25)	Admitted
245	That decision records that in the same reply Ms Taylor "proceeded to acknowledge the importance of communication and requested that you raise your concerns with her as soon as they arise so she could action them sooner for you". (Annexure A, Tab 25)	Admitted
246	That decision records that on 24 April 2024 the Appellant emailed Ms Taylor and "expressed your dissatisfaction with the process and that it had been more than 2 weeks without any response or overtime payment". (Annexure A, Tab 25)	Admitted
247	That decision records: "Ms Taylor responded to your email on 1 May 2024 via email and stated that after a consultation with payroll and Human Resources, your request for fatigue payment for 18 March 2024 would not be processed due to the existing 8-hour agreement signed by you on 17 June 2020." (Annexure A, Tab 25)	Admitted
248	That decision records, of the same email of 1 May 2024: "However, she noted you are able to terminate this agreement going forward." (Annexure A, Tab 25)	Admitted
249	The period between the Appellant's email of 8 April 2024 and Ms Taylor's response of 1 May 2024 is 23 days.	Admitted
250	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any response was made to the Appellant's enquiry regarding fatigue leave at any time between 9 April 2024 and 1 May 2024.	Admitted
251	Review Decision 69983 records the Appellant's response of 9 August 2024 as stating that the break between the shifts of 17 and 18 March 2024 "did not include travel time", and: "If you factored in travel time, your break between shifts would have been less than 5 hours." (Annexure A, Tab 25)	Admitted
252	That decision records the employer's response of 6 September 2024 as confirming "you did not formally rescind the 8-hour agreement signed by you on 17 June 2020 and the change to your employment contract and adjustments in your working hours did not automatically invalidate the agreement". (Annexure A, Tab 25)	Admitted
253	That decision records: "The employer did not mention your shift on 18 March 2024." (Annexure A, Tab 25)	Admitted
254	That decision states: "In considering the evidence, I find there was uncertainty between you and the employer regarding whether the 8-hour agreement continued to apply." (Annexure A, Tab 25)	Admitted
255	That decision records that payroll was, as at 1 May 2024, "still reviewing your entitlements regarding public holidays not required arising while you were a part-time employee". (Annexure A, Tab 25)	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
256	That decision records Ms Taylor as confirming "that since your commencement of full-time employment, all payments for public holidays not required had been processed". (Annexure A, Tab 25)	Admitted
N	STRESSOR 3(d) - THE RESPONDENT'S OWN REVIEW DECISION OF 24 OCTOBER 2024	
257	Review Decision 69983 dated 24 October 2024 records that in its response the employer included an extract of the Hospital and Health Services General Employees (Queensland Health) Award which "stated that employees must be provided with a break of not less than 10 hours between the termination of one shift and the commencement of another shift, and 8 hours applied instead of 10 only in specific circumstances". (Annexure A, Tab 25)	Admitted
258	That decision states: "The break between the shift on 17 March 2024 and 18 March 2024 equated to 7 hours." (Annexure A, Tab 25)	Admitted
259	That decision states: "Even if you were allowed to leave early on 17 March 2024 as suggested by the employer, you left a maximum of 30 minutes early, which meant you still did not receive a minimum 8-hour break." (Annexure A, Tab 25)	Admitted
260	That decision states: "Based on this, I find the rostering of these two shifts amounted to unreasonable management action given that it was in direct contradiction to the award and the 8-hour agreement." (Annexure A, Tab 25)	Admitted
261	That decision states, under the heading "Conclusion": "you sustained a personal injury of a psychological nature". (Annexure A, Tab 25)	Admitted
262	That decision states, under the heading "Conclusion": "your injury arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor". (Annexure A, Tab 25)	Admitted
O	THE EMPLOYER'S OWN STATEMENTS ABOUT ITS SYSTEMS AND RECORDS	
263	By letter dated 5 June 2026, reference K-LM26/729, signed by Ms Noelle Cridland as Chief Executive of Metro South Hospital and Health Service and addressed to Commissioner Dwyer, Metro South Health stated in relation to Item 4: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training." (Annexure A, Tab 20)	Admitted
264	That letter states in relation to Item 5: "The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard." (Annexure A, Tab 20)	Admitted
265	That letter states in relation to Item 7: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants." (Annexure A, Tab 20)	Admitted
266	That letter states in relation to Item 3(c): "there have been no 'consequential' changes to operating procedures over the period requested." (Annexure A, Tab 20)	Admitted
267	That letter states in relation to Item 3(a): "All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant." (Annexure A, Tab 20)	Admitted
268	That letter states in relation to Items 1 and 2: "a spreadsheet of recorded MET calls is available for the period 17-18 March 2024." (Annexure A, Tab 20)	Admitted
PART FIVE - GENERAL: THE RECORD, THE ADMISSIONS AND THE MATTERS NOT ALLEGED		
P	MATTERS NOT DONE, AND MATTERS NOT AVAILABLE	
269	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk assessment was conducted in respect of the Appellant's position at any time before 30 June 2024.	Admitted
270	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any fatigue risk management training was provided to the Appellant in respect of his position at any time before 30 June 2024.	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
271	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that fatigue risk management assessment was implemented at Logan Hospital Switchboard at any time before 30 June 2024.	Admitted
272	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that any change was made to the operating procedures of Logan Hospital Switchboard as a consequence of any employee complaint over the period 1 December 2023 to 30 June 2024.	Admitted
273	The Respondent's amended List of Documents dated 14 August 2026 does not list any document recording consultation with Switchboard operators before the change communicated by the email of 15 April 2024.	Admitted
Q	THE APPELLANT'S CONTEMPORANEOUS ACCOUNT, AND THE DOCUMENTS THE RESPONDENT LISTS	
274	The Respondent's amended List of Documents dated 14 August 2026 lists at item 12 an email from the Appellant to WorkCover Queensland dated 12 July 2024 with the attachment described as "Event overview - undated".	Admitted
275	That amended List of Documents lists at item 14 an email from the Appellant to WorkCover Queensland dated 18 July 2024 with the attachment described as "Witness statement - Carolyn Jeffrey".	Admitted
276	That amended List of Documents lists at item 16 an email from Ms Carolyn Jeffrey to WorkCover Queensland dated 1 August 2024 described as a follow up statement.	Admitted
277	That amended List of Documents lists at item 25 an email from the Appellant to WorkCover Queensland dated 29 August 2024 described as regarding the after hours on call change, with the attachment described as "Email: After hours on call process".	Admitted
278	That amended List of Documents lists at item 26 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: Task change switchboard - 19/04/2024".	Admitted
279	That amended List of Documents lists at item 27 an email from the Appellant to WorkCover Queensland dated 30 August 2024 described as regarding failure to consult, with the attachment described as "Email: MASPER process - 09/05/2024".	Admitted
280	The Appellant provided the document described at item 12 to WorkCover Queensland on 12 July 2024.	Admitted
281	The Respondent's amended statement of facts and contentions dated 13 May 2026 states at paragraph 11: "The respondent does not admit the allegations in stressor 1(a) of the appellants statement, because there are no particulars or details to respond to."	Admitted
282	On 11 August 2026 the Appellant served on the Respondent a bundle titled "Stressor 1(a) - Particulars support bundle", comprising 30 pages and six tabs, each stating a particular of Stressor 1(a) of the Amended Form 9A and enclosing the documents recording it.	Admitted
R	FACTS ALREADY ADMITTED BY THE RESPONDENT IN THIS PROCEEDING ON 18 FEBRUARY 2026	
283	On 18 February 2026 the Respondent, by Ms Renee Matheson, Senior Appeals Officer, signed and served on the Appellant a response to the Appellant's notice to admit facts in this proceeding. (Annexure A, Tab 27)	Admitted
284	In that response the Respondent admitted paragraph 1 of that notice, being: "On 17-18 March 2024, the Appellant was rostered to finish work at 23:00 and commence his next shift at 06:00, resulting in a break of only 7 hours." (Annexure A, Tabs 26-27)	Admitted
285	In that response the Respondent admitted paragraph 3 of that notice, being: "The Employer's 'Fatigue Risk Management Policy' and the relevant Award require a minimum break of 10 hours between shifts, or 8 hours by written agreement." (Annexure A, Tabs 26-27)	Admitted
286	In that response the Respondent denied paragraph 4 of that notice, on the stated ground: "because in June 2020, the Appellant signed an agreement allowing an 8 hour break between shifts". (Annexure A, Tab 27)	Admitted

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
287	In that response the Respondent admitted paragraph 5 of that notice, being that Ms Reese stated in an email dated 7 August 2023: "I do realise in this instance there was a rostering error that was accidentally made by Chloe with regards to night shifts". (Annexure A, Tabs 26-27)	Admitted
288	In that response the Respondent admitted "that Ms Taylor removed a page from the workplace communications book", and did not admit that the page contained the Appellant's handwriting "because the respondent does not have a copy of the page". (Annexure A, Tab 27)	Admitted
289	In that response the Respondent admitted paragraph 8 of that notice, being: "Maintaining accurate contact details for medical staff is a critical function of the Switchboard to ensure effective clinical handover and patient safety." (Annexure A, Tabs 26-27)	Admitted
290	In admitting that paragraph the Respondent added: "and says that there was a procedure in place for this to occur". (Annexure A, Tab 27)	Admitted
291	In that response the Respondent denied paragraph 9 of that notice on the stated ground: "because there was already a procedure in place". (Annexure A, Tab 27)	Admitted
292	In that response the Respondent admitted paragraph 14 of that notice, being that in an email to Ms Reese dated 6 June 2023 Ms Taylor stated: "I did raise my voice and asked him to please stop talking over the top of me." (Annexure A, Tabs 26-27)	Admitted
293	In that response the Respondent admitted that the Union Encouragement Policy QH-POL-248 "says words to that effect", the effect pleaded being that the Policy "requires managers to take a 'positive, supportive role' to facilitate union membership and delegate elections". (Annexure A, Tabs 26-27)	Admitted
294	In that response the Respondent admitted "that the Appellant sent a text to Ms Taylor at 5.03pm that he was 'just putting his hand up'", and said that this was not a formal notification. (Annexure A, Tab 27)	Admitted
295	In that response the Respondent admitted "the contents of the Respondent's review unit decision", and said that this fact is not relevant because the appeal is a hearing de novo. (Annexure A, Tab 27)	Admitted
296	In that response the Respondent admitted paragraph 40 of that notice, being the instruction of Ms E Grant of Payroll of 3 May 2024. (Annexure A, Tab 27)	Admitted
297	In that response the Respondent admitted "the fact that Ms Taylor submitted the AVAC on 28 May 2024". (Annexure A, Tab 27)	Admitted
298	In that response the Respondent admitted paragraph 46 of that notice, being the email of Ms Taylor of 21 May 2024 stating that she was waiting for payroll confirmation and would submit an AVAC for the next pay run. (Annexure A, Tab 27)	Admitted
299	In that response the Respondent denied paragraphs 42 to 45 of that notice on the stated grounds: "because the comparator used does not represent a true comparator in the circumstances and because the roster was equitable". (Annexure A, Tab 27)	Admitted
S	MATTERS THE RESPONDENT DOES NOT ALLEGE	
300	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant was subject to any disciplinary process at any time before 18 June 2024.	Admitted
301	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not allege that the Appellant's work performance was the subject of any formal performance management process at any time before 18 June 2024.	Admitted
302	The Respondent's amended statement of facts and contentions dated 13 May 2026, as presently constituted, does not describe any communication with the Appellant before 18 June 2024 as a warning, or as part of a disciplinary or performance management process.	Admitted
303	Paragraph 27 of the Respondent's amended statement of facts and contentions dated 13 May 2026 does not identify, by particular, date, document or cross-reference, the management action relied upon for the contention in that paragraph.	Admitted

Signature:	
Print name:	Cory Lea Shepherd
Title of office held:	Appellant (self-represented)
Date:	28 / 08 / 2026

SCHEDULE OF DOCUMENTS – ANNEXURE A

Authenticity to be admitted – Industrial Relations (Tribunals) Rules 2011, rule 49

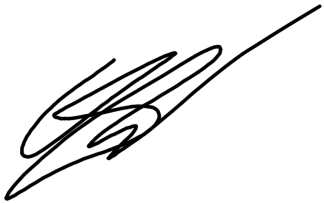
Take notice that the appellant also asks the respondent to admit, for this proceeding only, the authenticity of the documents specified below, and that if the respondent does not within 14 days after receiving this notice serve a notice on the appellant disputing the authenticity of those documents, the respondent is taken to admit their authenticity for this proceeding only.

The authenticity of the same documents is also the subject of a separate **Form 25 - Notice to admit documents** served with this notice, annexing the same Annexure A. This schedule is retained in this notice as a cross-reference.

Tab	Document	Date	Authenticity admitted / disputed
1	Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital	undated	Disputed
1A	Email, Ms E Stibbard to the Appellant and the Switchboard team, "Hello & Update", produced under Tab 1 of the Stressor 1(a) particulars bundle served 11 August 2026	18 July 2023, 12:56 pm	Admitted
1B	Email, Ms C Taylor to Ms T Reese, "Fwd: Communication Book Update", with, beneath it, Ms Taylor's email to Logan Switch of 6 June 2023 at 9:57 am, "Communication Book Update"	6 June 2023, 4:05 pm	Admitted
2	Email chain, the Appellant to Ms C Taylor, Ms T Reese, Ms P Conaghan and Ms T Smith, "Increase of hours and Workplace issues", and the replies of Ms Reese in the same chain	7 to 10 August 2023	Admitted
3	Email, Ms T Reese to the Appellant attaching HR Policy E12; and the emails of 4 and 8 September 2023	29 August to 8 September 2023	Admitted
4	Document, the Appellant to Ms C Taylor, "Request to Increase Working Hours to Full Time Rotational Roster"; and the reply of Ms Taylor of 7 August 2023 at 1:43 pm and the email of Ms Reese to Ms Taylor of 7 August 2023 at 5:11 pm	7 and 31 August 2023	Admitted
5	Email, Ms C Taylor to the Appellant, "Approved - Permanent Full Time FTE"	27 September 2023, 1:52 pm	Disputed
6	Email, Ms C Taylor to Logan Switch and Switchboard staff, "Afterhours Oncall Process - Switchboard", as forwarded by the Appellant to WorkCover Queensland on 29 August 2024	15 April 2024, 12:39 pm	Disputed
7	Email chain, "Roster Concerns", as produced under the Regulator's tab of that name - Ms T Reese to the Appellant of 26 April 2024 at 1:52 pm; the Appellant to Ms Reese of 1 May 2024 at 1:18 pm; and Ms Reese to the Appellant of 8 May 2024 at 9:08 am	26 April to 8 May 2024	Admitted
8	Emails, Ms T Reese to Mr M Pritchard "FW: Roster Concerns", and Ms T Reese to LBH_HR with attachment "qh-gdl-401-3.3"	10 and 20 May 2024	Admitted
8A	Cover page of the attachment to that email - Fatigue risk management systems, Implementation guideline QH-GDL-401-3.3:2021	2021	Admitted
8B	MASPER register email records - Ms Taylor to Vivian Kwok, MASPER Registrar, and Dr Wong, "RE: Switchboard issues 5 May, 7 May, and 8 May"; Ms Taylor to Logan Switch and Switchboard staff, "MASPER process"; and the underlying switchboard issue logs of 2 to 8 May 2024, produced under Tab 3 of the Stressor 1(a) particulars bundle served 11 August 2026	9 May 2024 (issues logged 2-8 May 2024)	Admitted
8C	Email, Ms E Stibbard to the Switchboard team, "Switchboard After Hours On Call Manager PP24 13/5/24 - 26/5/24"	13 May 2024, 4:29 pm	Admitted

Tab	Document	Date	Authenticity admitted / disputed
9	Email, Ms C Taylor to Logan Switch and Switchboard staff, "Switchboard Manager - On call and Hours."	17 May 2024, 9:30 am	Admitted
9A	Email chain, "Office Hours and Departmental Directives" - the Appellant to Ms C Taylor and Logan Switch copied to Switchboard staff, Ms T Reese and LBH_HR at 1:15 pm; the reply of Ms Reese at 6:23 pm; and the reply of the Appellant at 7:09 pm	15 May 2024	Admitted
9B	Email, Ms T Reese to the Appellant, "RE: Office Hours and Departmental Directives"	21 May 2024, 2:53 pm	Admitted
10	Email, Ms C Taylor to the Appellant, "Sick leave 14.05.24"; and, on the same page, the email of Ms Taylor to Ms T Reese of 15 May 2024 at 1:07 pm forwarding it	14 and 15 May 2024	Admitted
11	Emails, Ms S Marriott to Logan Switch "Respiratory Nurse Educators"; the Appellant to Ms C Taylor; and the reply of Ms C Taylor; as forwarded by Ms Taylor on 1 July 2025	15 and 20 May 2024	Admitted
12	Email thread, "Corey Shepherd 388372 Pay issues" - Payroll to the Line Manager copied to the Appellant; the Appellant to Payroll; Payroll to the Appellant	3 to 13 May 2024	Admitted
13	Same thread continued - the Line Manager to the Appellant	21 May 2024, 12:33 pm	Admitted
14	Email, Ms C Taylor to the Appellant copied to Ms T Reese, "Validation of Claims older than 3 months - Please sign", as forwarded by Ms Taylor on 10 July 2025	28 May 2024, 8:36 am	Admitted
15	myHR submissions report for the Appellant, produced by Metro South Health as Item 11 of the notice of non-party disclosure	1 February to 31 May 2024	Admitted
16	QH Leave Takings Report for the Appellant, produced by Metro South Health as Item 15 of the notice of non-party disclosure	19 March 2024	Admitted
17	Movement forms recording approved changes to working hours, approved by Mr S Hughes as delegate	27 February 2026	Disputed
18	Movement form	17 April 2026	Disputed
19	Movement form	9 June 2026	Disputed
20	Letter, Metro South Hospital and Health Service to Commissioner Dwyer, reference K-LM26/729, signed by Ms N Cridland, Chief Executive	5 June 2026	Disputed
21	Email, Ms L Forrest, Senior Consultant Human Resources, to the Appellant	7 July 2026	Disputed
22	Consultation Paper - Proposed Rosters for Switchboard Services, Logan Hospital	November 2024	Disputed
23	Consultation outcome - Proposed Rosters for Switchboard Services, Logan Hospital	December 2024	Disputed
24	Email, Mr H Moran, Organiser, Together Queensland, to Ms C Jeffrey, Ms P Conaghan and the Appellant, "Switchboard Roster Feedback - For Delegates"	3 November 2025	Disputed
25	Review Decision 69983, Workers' Compensation Regulator	24 October 2024	Admitted
26	Notice to admit facts served by the Appellant on the Respondent, to which the response at Tab 27 was given	served before 18 February 2026	Admitted
27	Respondent's response to that notice, signed by Ms R Matheson, Senior Appeals Officer	18 February 2026	Admitted

Tab	Document	Date	Authenticity admitted / disputed
28	myHR leave request history for Process Reference 15480560, produced by Metro South Health as Item 11 of the notice of non-party disclosure	20 February to 1 March 2024	Admitted
29	Instrument of Human Resource Sub-Delegation, COVID-19 Pandemic Event - Paid Special Pandemic Leave, signed by Ms N Cridland, produced as Item 13	effective 5 December 2022	Admitted
30	Email, Ms C Taylor to Logan Switch and Switchboard staff, "What's Chloe's Hours?!", extracted from a compilation of Ms Taylor's notifications to Logan Switch held by the Appellant; the balance of the compilation is available on request	23 August 2023, 2:18 pm	Disputed
30A	Email, Ms C Taylor to Logan Switch, copied to Ms T Reese and Ms E Stibbard, "Good morning Team.", extracted from the same compilation	18 June 2024, 8:58 am	Disputed
31	Screen capture of the workbook "2024 Emergency Code Register.xlsx" (MARCH 2024 sheet), showing the entries recorded for 16 to 20 March 2024	March 2024	Disputed

Signature:	
Print name:	Cory Lea Shepherd
Title of office held:	Appellant (self-represented)
Date:	28 / 08 / 2026